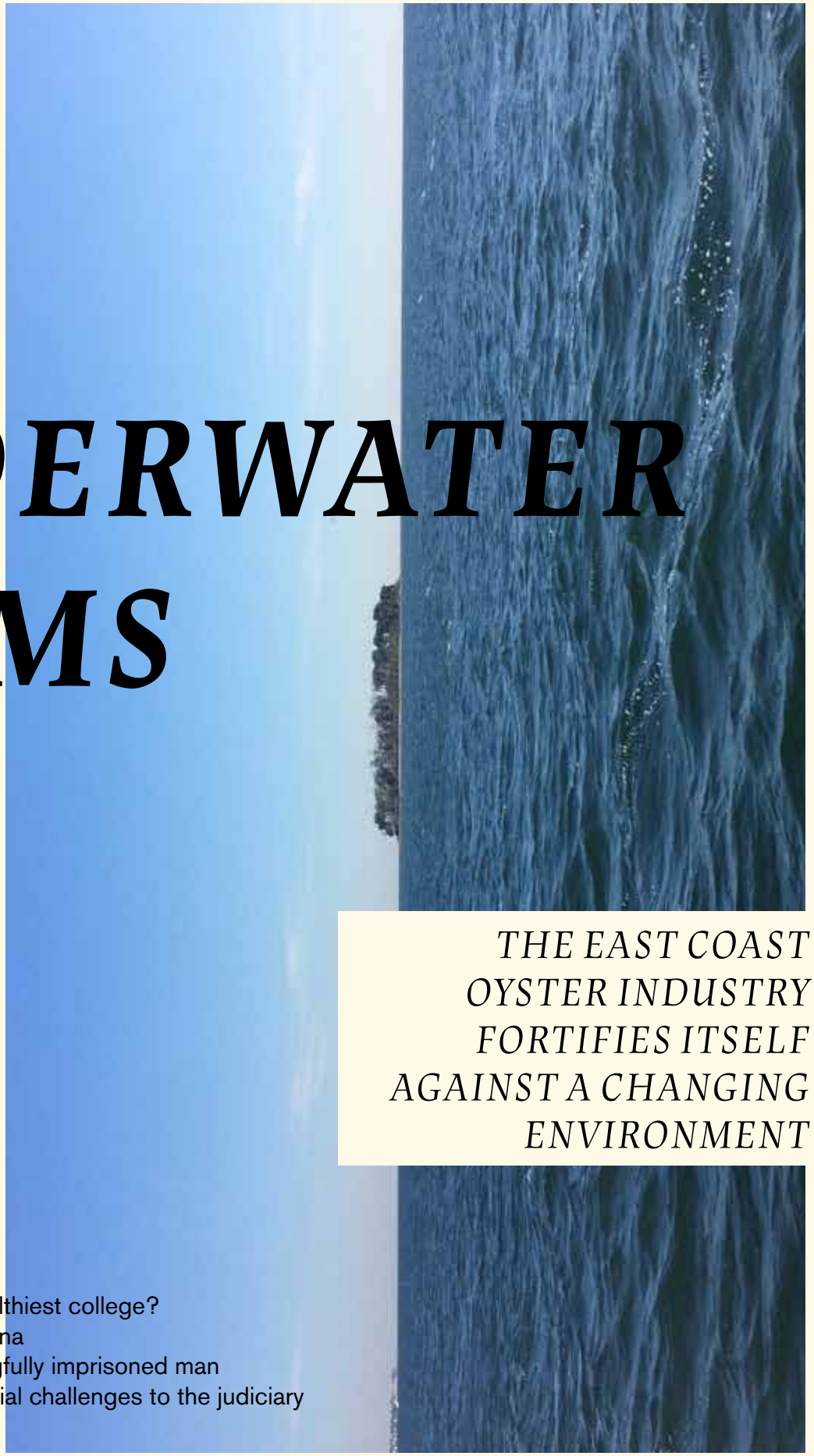
The Politic

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UNDERWATER FARMS



THE EAST COAST OYSTER INDUSTRY FORTIFIES ITSELF AGAINST A CHANGING ENVIRONMENT

INSIDE:

Jonathan Edwards: the wealthiest college?
A missing activist in Argentina
The self-defense of a wrongfully imprisoned man
Historical feature: presidential challenges to the judiciary

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Whispers of Wealth at Jonathan Edwards College

BY **JACK KELLY**

"WE ARE COMMANDED...to give our poor neighbor what is sufficient for his need," wrote Jonathan Edwards in 1732.

In his eighteenth-century Great Awakening sermons, Edwards, who graduated from Yale College in 1720 at age 17, championed the Protestant virtue of asceticism. But the residential college named after him is Yale's wealthiest.

Jonathan Edwards (JE) has a reputation for luxury: the college's first-year handbook promotes JE as the "the classiest college"; its annual Spider Ball is "the swankiest party on campus all year." Among students, too, in the game of Residential College word associations, if Morse and Stiles are "ugly," Franklin and Murray "new," TD and Silliman "far," then JE is undoubtedly "rich."

"I just remember freshman year my friends in JE getting to go to Hamilton and being low-key jealous," one upperclassman told *The Politic*.

"I heard that they had a special endowment for tulips," added another.

A third student concurred: "A friend said that there's 60,000 dollars endowed for tulips every year...It sounds like something that *could* happen, but it also sounds unlikely."

The speculations were even stronger when *The Politic* asked students where they thought the money came from. Many responded simply with "alumni." Specifically, one student thought JE had the "strongest alumni network," which translates to more donations. Others even spoke of an offshore account.

JE does have the same budget, at least nominally, as other colleges, following equalization measures in 2010. The university used to allow alumni to donate to specific residential colleges, but because of the reforms, JE alumni must donate to Yale College, not their residential affiliation.

But unlike the other colleges, JE maintains a trust that provides ancillary funding—on average about 40,000 dollars a year.

Tracing the history of JE's wealth requires a broader examination of the residential college system's history. The residential college system started in 1926, with a gift from Edward Harkness, class of 1897. Harkness, a philanthropist, borrowed the system from Cambridge and Oxford. At the time, Yale's population had grown to over 1,500 undergraduates; student overcrowding was rampant, and housing largely depended on where Yale could find swing space. Harkness hoped the new system—of, at that time, eight smaller college communities within the university—would help recreate the smaller Yale College of yore, which in 1860 had only amounted to 500 or so students.

Still, while the Oxbridge model inspired his quest, Harkness wanted Yale's colleges to be less autonomous than their British counterparts from the inception. The Yale residential colleges were meant to be microcosms of the university as a whole, rather than unique bodies.

Equality in funding for colleges was already debated in nascent years of the system. Tucked away on page 66 of the *New York Times* from June 22, 1941 (the front page headline was "Hitler Begins War on Russia") lies an article in the education section: "Bequest to Yale Brings Up Problem: Officials Are Divided on The Individual Colleges Having Endowments." The piece noted that advocates for equal budgets argued that "the creation of individual endowments of unequal amounts [could] defeat the university's expressed wish to keep the same level of desirability in the college." But others argued that to create equal budgets "would be to relegate the colleges permanently to the category of pleasant residential dormitories."

Ultimately, Yale did allow for the practice of donations to individual colleges, which allowed Jonathan Edwards College to accumulate unusual wealth. Mark Saltzman, the current Head of JE, told *The Politic* that as a result, the '40s and '50s saw a large influx of alumni donations. At that time, the baseline budget for residential colleges differed and students were able to choose their college. (Today, students are randomly sorted into colleges, unless they are legacies, in which case they can opt in or out of immediate family members' colleges.) In 1966, the desire to consolidate, invest, and manage these donations led to the creation of the Jonathan Edwards Trust.

In some ways, this period—with the dual effects of financial independence and students being able to choose their own colleges—was the height of college heterogeneity.

Over the years, individual colleges developed reputations based on the types of students who chose to apply to each. By the time the endowments were equalized in 2010, the *Yale Daily News* noted that in the '60s, "Calhoun was full of 'jocks,' Davenport housed many upper-class students and Timothy Dwight and Silliman, because of their closeness to Science Hill, attracted science majors." Back in the '50s, the *Harvard Crimson*, in an article entitled "Eli Colleges Outclass Houses as Social Centers," provided a more thorough genealogy, and this account did not put JE at the top: "Davenport, Pierson, Branford, and Calhoun are ellegedly [sic] the homes of the socially prominent...'white shoe men,' and hence the most desirable. Berkeley, Jonathan Edwards, and Timothy Dwight fit into a middle caste. Silliman is the home of vigorous but not big time extroverts, and Trumbull and Saybrook are shunned as 'black shoe' choices."

The same '50s-era *Crimson* article conceded, however, that "these distinctions [between colleges] are pretty



spurious since a Council of Masters carefully [planted] a balance of high school men, prep school men, and scholarship students in each College."

In general, the inequality between college reputations was not as visible as inequality between the students themselves. "Dinner was actually served with white tablecloths and waitresses who served us," Miles Alderman '58, who was a student in JE, told *The Politic*. "The students who were on scholarships were working in the dining halls."

But per Alderman, this elitist practice existed in every college—with so much visibility of the differences in student wealth and prestige, gradations of opulence among the colleges were less noted.

Since Alderman's time at Yale, the student body has become more diverse and the residential colleges have become—at least formally—more uniform. The 1960s saw the end of student choice over residential college assignment (the sorting process is now randomized, except legacies can choose to opt into immediate family members' colleges); the 2000s saw a new wave of standardization among the colleges, as Yale increased its oversight over college Heads' actions. Most significantly, in 2010, the University announced that it would equalize residential college endowments.

"But unlike the other colleges, JE maintains a trust that provides ancillary funding—on average about 40,000 dollars a year."

For Jonathan Edwards College, this decision ended the years of a greater formal budget. Unlike all other of Yale's 14 colleges, however, JE still had its own Trust, which remained untouched.

Mark Ryan, who received his Ph.D. from Yale in 1974, is a spirited emblem of Yale—and of JE in particular, where he served as dean from 1976–1996. Today, he serves as the chair of the JE Trust.

Ryan's strong ties to Yale, to JE, and to the concept of residential colleges are on display in his 2001 book. *A Collegiate Way of Living: Residential Colleges and a Yale Education* is a 150-odd page work bound with an image of Harkness tower on the front cover and JE's Great Hall on the back. "This publication is made possible by the Jonathan Edwards Trust," reads an acknowledgment.

The trust, like Yale as a whole, is a 501(c)3—a tax-exempt non-profit. As such, its 990 tax forms are available online back to 1997. By then, it had already accumulated a significant valuation. JE's aforementioned lack of status as a wealthier college may appear to stand in conflict with the growth of its trust. But, according to Ryan, this perception in fact led the college to pursue and manage donations.

How did JE become the "rich" college in the minds of students? Ryan told *The Politic* that JE was originally "perceived as the most poorly endowed of the new colleges, in terms of facilities. JE's relatively small footprint and the need to incorporate pre-existing buildings made it appear less architecturally distinguished, and more cramped, than the spacious and uniform facilities of, say, Branford or Pierson."

A concerted effort to compensate for this reputation led to the influx of donations, ultimately formalized in the trust. "For nearly four decades after its inception in 1966, the Trust's funds were managed by outside agencies designated by the board," Ryan added, namely, securities traded through Sanford Bernstein & Co.

"As part of its independent status, its funds are controlled by its own board, not by the University; that is the reason that those funds were not included in the equalization measures of 2009," he continued.

"In 2004, at the board's request, the Yale Investment Office agreed to assume management of the funds as units in its unitized pool of assets," Ryan told *The Politic*. Had the trust been under university control, it would have been susceptible to the equalization measures.

Since it receives its resources from independent shares in the endowment, and not the Yale budget itself, the trust can maintain its growth. It can continue to receive funding, without technically receiving any more resources from the University itself than any other college.

In addition to shielding it from reform efforts, receiving shares in Yale's endowment has helped the trust grow significantly in value. In 2003, the trust was worth about 20,000 dollars less than it had been in 1997, adjusting for inflation. In 2004, after the management change, the Trust's value grew by 17 percent. By 2006, it broke a million dollars.

What does this actually mean for JE students?

The trust has averaged a roughly 40,000 dollar payout each year to JE since 1997. Originally, the money was spent on a panoply of new resources for the college: art exhibits of the works of Paul Cadmus (10,000 dollars, 1997) and George Platt Lynes (10,000 dollars, 1998), grand pianos (15,000 dollars total, 1998–2000), the publication of Ryan's book (5,000 dollars, 2000) and another history of JE published the same year (15,000 dollars, 2000); and, indeed, several allocations for those much-discussed tulips.

Since the reforms of 2010, Yale allocates funds for such purchases equally to colleges through the Arts Discretionary Fund. Now, the trust has been dedicated to sending "small groups of undergraduates and fellows to cultural events in New York," explained Ryan. A JE first-year described this process, referred to as a "Culture Draw."

"We enter a pool and are randomly drawn for tickets to different events, from opera shows to Broadway shows to art exhibits in New York City and New Haven, as well as pre-experience dinners," the student explained.

Many students don't know where money for these "Culture Draws" comes from. Sarah Naco '18, head JE first-year counselor and former Head of College aide, said in an interview with *The Politic* that she wasn't aware of the source of this money. Since the trust pays out its grants directly to the college, funding coming from the Trust is indistinguishable to the students from regular college-supported spending.

As far as former JE Head of College Penelope Laurans is concerned, JE itself doesn't meaningfully differ from other colleges in terms of wealth, even with the Trust. She stressed that the same case of JE's comparative advantage in resources could be made for any college.

"JE, for example, would love to have a pizza oven," Laurans told *The Politic* in an email, referencing a perk found in some residential college's dining halls.

"We'd love to have the same number of singles as Stiles and Morse or the spacious rooms of the new colleges. We'd love to have a separate common room that was not a pass through to the dining hall as Branford and Trumbull and some other colleges do," she continued. "I could go on in this vein forever."

Laurans' list of college differences, the spirited competition of intramurals, and postprandial debates over the merits of Morse/Stiles versus Murray/Franklin pizza crust reveal the ways in which each college strives to seem unique. Laurans told *The Politic* that "as to equity among the colleges I like something I once heard Dean Chun say: 'Residential college resources are equitable, not equal.'"

Indeed, for multiple JE administrators and students that *The Politic* interviewed, the college's traditions, often without the support of the trust, form an important part of their identification with the college. But JE's ability to weather the process of endowment equalization in some ways depends on its trust, creating the potential for accusations of inequality.

A few years ago, Pierson College, which also had an endowment that was larger than average, had to cancel a yearly spring break trip to Italy for members of its senior class who won a lottery. Harvey Goldblatt Ph.D '78, the Italophile and then-Master of Pierson who spearheaded the trip, retired in 2010, the same year the endowment was equalized. Sources speculated in the Yale Daily News at the time that Goldblatt's departure was connected to disagreements with the administration over the individual college budget cuts and Yale's growing oversight over colleges' actions. As with many residential college traditions, students felt the loss not so much of resources, but of an opportunity to build community with individual college traditions.

As far as former JE Head of College Penelope Laurans is concerned, JE itself doesn't meaningfully differ from other colleges in terms of wealth, even with the Trust.

And perhaps this sentiment applies to JE's wealth, too. Its mechanics are widely unknown and misunderstood, and when they are revealed, may appear comparatively minor; its current use of the Culture Draw serves only a limited number of students per year. But do these very limitations—on JE's extra funding and on student understanding thereof—serve as a greater enriching resource than the trust itself?

The monetary mystique surrounding the college shrouds all of its resources in intrigue. The quest to win the Hamilton tickets and the ignorance of how the funding operates within JE keep the mystery alive for Spiders. While the quibbling over college endowments stretches back to their foundation, college pride is its own kind of currency. Supplied with whatever it has, each college works to cultivate its gardens—whether tulip-filled or not.

"KEEP IT ALL IN THE GROUND":

CANADIANS RECKON WITH DIRTY ENERGY AND HYPOCRITICAL POLICIES

BY **MICHELLE ERDENESANAA**



MIMI, AN ELDERLY Inuit woman who lives in the small Quebec village of Kangiqsualujjuaq, knows the George River well. Every summer, at the river's terminus, she watches the salmon migration, and she sees black bears—and polar bears, if she is lucky—stalk caribou at the southern tip of the Arctic sea ice pack. I met Mimi in the summer of 2015 at the end of a white-water canoeing trip. When I asked if the 35° F weather was normal for a sunny August day, she shook her head. It was too warm. Over the past decade, the salmon had begun migrating earlier, polar bears had stopped wandering south, and sea ice had continued to retreat.

When Justin Trudeau assumed office as Prime Minister of Canada in 2015, the international community already recognized him as a champion of progressive social policy. In his campaign, Trudeau established himself as an outspoken feminist, an ally to refugees, and a protector of indigenous people's rights. On environmental policy, though, he stayed comparatively quiet.

This silence was especially noteworthy given Canada's precarious identity both as the world's sixth largest oil producer and as a region especially vulnerable to climate change. In his first years in office, Trudeau pushed a federal carbon tax and imposed a moratorium on Arctic drilling. But Canada's stubborn commitment to fossil fuels in the western provinces directly conflicts with Trudeau's progressive track record.

At a Houston petroleum industry meeting, Trudeau voiced support for drilling and received a standing ovation. "No country would find 173 billion barrels of oil in the ground and just leave them there," he told the crowd, according to *The Guardian*.

In 2016, Trudeau approved the Petronas liquefied gas project and pushed through several major pipeline extension plans meant to transport much of those 173 billion barrels of crude oil. Trudeau's climate legislation seems so contradictory to his public image that Bill McKibben, founder of the carbon-mitigation

Canada is home to delicate ecosystems that are doubly vulnerable: The oil and natural gas industries have preyed on the tundra for decades—a region already sensitive to the effects of global warming.

organization 350, published an opinion piece in *The Guardian* in April titled "Stop swooning over Justin Trudeau. The man is a disaster for the planet."

Canada's geography makes the reduction—and eventually phasing out—of tar sands and drilling activity in the western provinces all the more urgent. During the spring of 2016, Canada's land and sea ice began to melt an estimated four to five weeks earlier than usual. Melted land ice in particular contributes to sea level rise and exposes the darker land below. This land absorbs more heat from the sun and promotes further melting, creating a dangerous positive feedback loop that motivates rapid ice loss.

Some areas of land and sea ice also remain unprotected by Trudeau's 2015 moratorium on new oil and gas leasing in the Arctic. The ban, formally known as the United States-Canada Joint Arctic Leaders' Statement, included a press release that explicitly defines the areas protected from new leasing. But its definitions of sustainable shipping policies through Arctic waters remain vague. This ambiguity contradicts the partnership's stated priorities: protecting the lands for the sake of cultural significance and ecological stability, and protecting inhabitants from the operational risks of extraction processes.

The statement does not offer substantive policy recommendations to protect Arctic waters from shipping pollution and spills. A 2015 *Scientific American* article, "Can the Arctic Be Developed and Protected?" analyzed the international Arctic Council's regulations that took effect last January. Although the new code prohibits ships from dumping oil in Arctic waters, it still allows ships to carry oils offshore and does not address regulation of spill cleanup or heavy fuel oil use.

Canada's heaviest hydrocarbon producers are based in western provinces—particularly Alberta and Saskatchewan. These provinces, along with Newfoundland, are the only ones led by conservative governing parties. Alberta and Saskatchewan collaborate closely with the largest players in the oil industry, including the Canadian Association of Petroleum Producers (CAPP) and Petroleum Services Association of Canada (PSAC), both influential lobby groups for petroleum extraction and refining. PSAC represents over 240 companies in Canada's oilfield supply and manufacturing and has historically lobbied for fossil fuel development, but lately the association has started turning to clean energy.

Mark Salkeld, president and CEO of PSAC, does not think the country is likely to halt oil drilling anytime soon.

"The likelihood of Canada's phasing away from fossil fuels for energy in the near future is slim to none," he said in an interview with *The Politic*. "Canada needs a mix of all forms of energy—solar, wind, hydro, nuclear and geothermal, for instance—along with oil and gas."

Changes in PSAC's membership policy reflect a trend towards supporting the use of renewable energy among member companies. The asso-



ciation recently removed the requirement that member companies must derive half of their revenue from oilfield development.

"Current members are applying renewable and alternative energy sources to their service offerings," Salkeld said.

This policy change allows energy companies to enjoy the benefits of membership while retaining the freedom to invest or directly work in renewable energy development. The decision also represents a massive shift in corporate ideology. PSAC's steps toward a renewable-energy future suggest that there are alternatives to the all-or-nothing approach of choosing between fossil fuels and renewables.

"It is not a them or us scenario," said Salkeld. "It is them and us."

Despite the hegemony of oil and gas lobby groups like PSAC in the western provinces, environmental protection organizations also exert their influence in Canadian oil country. To Gideon Forman, a climate change and transportation policy analyst from the David Suzuki Foundation, changing oil and gas policies are signs of hope. But these changes are not without complications. Alberta's economic diversity data from 2015 noted that 18.5 percent of the province's GDP came from oil, gas, and mining. Halting drilling would strike a major blow to the economic productivity of Alberta, which is home to three of the nation's largest and most productive oil sands, and the people living there.

"We are very concerned about workers in these industries," Forman said in an interview with *The Politic*. "That they're not left high and dry."

The Athabasca sands, based around the city of Fort McMurray, are the world's largest reserve of crude oil. The reserves were largely responsible for Alberta's strong economic growth when the province began developing oil sands in the mid-1900s, leading to the greatest increase in provincial revenue from a single industry in Canadian history.

Meanwhile, the province spends millions of dollars trying to make the oil industry appear environmentally-conscious. For years, oil and gas proponents in Alberta have poured millions of dollars into carbon scrubbing, which uses chemical agents to remove carbon from smokestacks, and artificial carbon capture and storage (CCS), which sequesters the removed carbon underground. Although these technologies diminish the environmental harm of smokestacks, they come at a high ecological and economic cost.

From a geological standpoint, artificial sequestration of carbon is dangerous, as pumping large volumes of fluids underground increases the frequency of human-induced earthquakes.

From environmental and economic standpoints, investing in CCS is investing in a fallacy. The investments are last-ditch attempts to make the fossil fuel industry appear ecologically viable. Alberta will spend about 1.25 billion dollars on its two largest CCS projects, the Alberta Carbon Trunk Line and the Quest Project, instead of renewable energy development. "While there's a huge amount of oil and gas in [Alberta and Saskatchewan], there's also world-class wind and solar resources," Forman said. "Those provinces could do much more to develop their resources."

Although Canada's federal climate policies fail to effect much change on the provincial level, Forman is optimistic that the western provinces can move toward renewables in the near future. "Over the next few years, I could see most, if not all, of Alberta's electricity coming from wind and solar," he said.

Considering the country's status as a progressive leader, its environmental policy is lagging. The future of clean energy in Canada is uncertain, but the current contradiction is clear: Canada, otherwise home to progressive policy, lacks the stringent environmental legislation needed to free the nation from fossil fuels. But on the question of the future, some lobbyists and activists are optimistic.

"The switch to a cleaner future will happen," Salkeld told *The Politic*. "We began with wood and whale oil, then to coal and kerosene, now oil and gas, to hydro, wind, solar and nuclear... We have been transitioning all along and will continue to do so."

"I'm not saying it's happening overnight," Forman said. "We're going to see a move away from fossils fuels... but it's going to take some time."

Canada is home to delicate ecosystems that are doubly vulnerable: The oil and natural gas industries have preyed on the tundra for decades—a region already sensitive to the effects of global warming.

In 2015, abnormally warm temperatures and unusual migration patterns worried Mimi, the Inuit woman from Kangiqsualujjuaq. When I asked about the Energy East pipeline project proposed almost exactly two years earlier, which would use Quebec City as a port terminal, Mimi shook her head again.

"Keep it all in the ground."





FRIENDS OF THE POD

Crooked Media Emerges as a New Democratic Voice

BY **KALEY PILLINGER**

THERE IS NO BETTER WAY to sass a sitting president than with his own words. This is the rationale behind the name of Crooked Media, a liberal news outlet most famous for its podcast, "Pod Save America." After the 2016 election, three former Obama staffers decided to make Trump's classic insult their own by founding the company.

Jon Favreau and Jon Lovett, Obama speechwriters, and Tommy Vietor, a former spokesperson for the National Security Council, hosted a liberal podcast, "Keepin' It 1600," on SoundCloud during the last few years of the Obama administration. During the campaign, they were confident that a Democrat would be in the White House in 2017, and the day after the election, they, like many other former Obama staff members, were shocked.

Several months after the election, the trio launched Crooked Media. "Pod Save America," its flagship podcast, has almost 1.5 million regular listeners. While "Keepin' It 1600" was part of a parent company The Ringer, Crooked Media is independent. The company hosts seven left-leaning podcasts, each with different policy niches. Since the election, Crooked Media has become a five million dollar enterprise.

Crooked Media is not the first company to propagate partisan journalism. "Going back to the founding of the Republic, there really wasn't any such thing as unbiased media," John Stoehr, a fellow at Yale who writes for publications including *The Washington Monthly* and *U.S. News*, told *The Politic*.

Nonetheless, compared to other liberal commentary outlets, such as *The Young Turks, The Daily Kos*, and the now-defunct *Air America*, Crooked Media has amassed a cult-like following. With three podcasts in the November Top 20 on iTunes, Crooked



For some, Crooked Media has become their guide to the Trump presidency.

Media is the candid, outspoken voice that many Democrats have been looking for.

At Yale, Crooked Media's name comes up on T-shirts and in conversation. Fellow Yalies often approach Irene Vasquez '21 when she wears her gray and yellow "Friend of the Pod" shirt. In an introductory economics lecture, the T-shirt made for an effective ice-breaker.

"Somebody came up to me and start talking," Vasquez told *The Politic*, "and now we're friends.

The founding trio, in a move to reach out to young adult fans, has gone on tour on college campuses in Wisconsin, Chicago, and Pennsylvania. Their products are popular on college campuses across the country, and the company now sells holiday merchandise, such as Christmas ornaments featuring the dogs of the podcast hosts.

Cenk Uygur of *The Young Turks* told *The Politic* that the "number one" key to success for outlets like Crooked Media is "to know who your audience is and serve them."

"When you're getting revenue from your audience, that's wonderful because you have a direct connection to them and you serve them," he said. Media companies that start from scratch, he explained, cannot rely on their name or their past ratings to keep them afloat. Instead, they need to give the audience what they want.

James Sleeper, Professor of Political Science at Yale, noted that outlets like Crooked Media often depend on advertisers or venture capitalists for funds. As of August 2017, Crooked Media mainly relied on revenue from advertisements and their live shows, and had not yet partnered with venture capitalists.

The podcast presents marketing opportunities, too. Listeners are familiar with Crooked Media's parade of advertisers, including Blue Apron, Harry's Razors, and the Cash App. The hosts' seemingly-unscripted banter about the products makes the ads entertaining. They sometimes even mock the products. Most known and joked about among fans is the podcast's Blue Apron ad. At the end of the ad, when Favreau begins to say the Blue Apron slogan ("A better way to—") Lovett interjects with a piece of funny, unrelated political news like "Manafort spent a million dollars on rugs!"

"That's the kind of advertising that actually works," Vasquez said. "You can tell from the way they present an ad whether they actually like the product." She even surprised herself by buying the a bouquet from of one of the show's frequent advertisers, ProFlowers.

Still, Sleeper warns that heavy reliance on ads can incentivize companies to sensationalize the news.

"The [stories] that are most popular get the ads," Sleeper said. "The way they get the ads is they have a lot of sex and a lot of sensation. Every media is under that pressure, but I think it's worse for small digital startups."

Part of "Pod Save America's" appeal among college students are its catchy ads, colloquial language, and constant criticism of Trump. The question is whether it can keep listeners engaged enough to last.

"I would not be surprised if it vanished next year," Stoehr said.

In the past decades, numerous news outlets have appeared and disappeared—from well-known sites like *Al Jazeera America* to regional ones like *Bay Citizen* in the San Francisco Area. In an era of infinite options, companies increasingly have to pander to the public. The Trump administration has certainly made the news sexier, but the President seems to be the only thing that can pull readers. Sites that do not cover D.C., for example, are having just as much difficulty as they did before 2016.

Podcasts may be safer from the difficulties that face other types of publications. Though programs such as "This American Life" have been around for years, using podcasts as a way to report news is a relatively recent phenomenon. Part of the reason for the success of these new podcasts, according to Stoehr, is that they are a "deliverable."

"[The podcast is] a product that has shape and form whereas in social media everything is formless and shapeless," he said.

bigotry [in ways] besides going to protests and rallies." During the Virginia primary, the hosts canvassed for now-Governor Ralph Northam.

Another example of Crooked Media's direct participation in political causes is their open support for Michigan State University (MSU) Democrats' advocacy to divest from the hedge fund Renaissance Technologies, whose CEO, Robert Mercer, is a white supremacist. According to Eli Pales, the PR Director of the MSU College Democrats, Crooked Media

nization that tells me to participate," Singh told *The Politic*. And he does participate—but not "specifically [because] of Crooked Media."

Vasquez also agreed that she, too, would volunteer whether or not she were encouraged to do so by Crooked Media. Nonetheless, "the reminder [to volunteer] is always good," and "the resources [Crooked Media] provide are useful, like when they connect you with the specific senators to call for Move On," said Vasquez.

Crooked Media has dominated the podcast landscape not just by reporting the news, but by channeling anger into action.

Unlike newspaper articles, which can easily become clickbait, it is harder for podcasts to be superficially enticing. And podcasts, unlike written media, allow for multi-tasking—listeners can engage while doing other activities like driving or exercising.

Crooked Media has dominated the podcast landscape not just by reporting the news, but by channeling anger into action. In a time when many say reading the news has become disheartening, Crooked Media's influence has extended beyond news commentary.

The Pod has become a leader for the Democratic base by guiding progressive citizens to different causes they can support. Their website includes a page called "Take Action," which connects fans to liberal organizations. The show's episodes often list people to call during elections or encourage participation in rallies. In one episode of "With Friends Like These," Ana Marie Cox tells listeners how "one can help in the fight against

first became involved when Michigan State House candidate and MSU alumna Mari Manoogian tweeted at Jon Lovett and Tommy Vietor to sign the MSU Democrats' petition; they then retweeted the call to action. Pales could not isolate the effect of Crooked Media's retweet, but certainly found that liberal advocacy groups in general proved helpful.

Pales argues that even if Crooked Media did not single-handedly generate support for the MSU Democrats' advocacy, it "is a valuable partisan tool." Although Pales sometimes finds it a little too partisan, he is convinced that Crooked Media and entities like it will play a critical role in firing up the Democrats' lukewarm base..

To what extent Crooked Media gets people engaged is hard to determine. For Georgia native Jyot Singh '21, Crooked Media is a part of a bigger tapestry of outlets that inspire him to get involved.

"They're another media orga-

The hyper-partisanship of Crooked Media represents the growing tension between two causes: the desire to avoid creating political echo-chambers, and the need to promote projects for Democrats to rally around. Smaller, newer companies foster more dialogue because they must listen to their audiences to survive.

As Uygur explains of the *Young Turks*, "The fact that we were born of the people and by the people—a lot of our hosts are originally from our audience—allowed us to represent them. The fact that we were online and started organically was a great advantage."

At a time where Democrats are upset with the country leadership, many seek news sources that are as passionate and angry as they are. For some, Crooked Media has become their guide to the Trump presidency.



FINDING SANTIAGO IN A POST-TRUTH WORLD

BY **MEHR NADEEM**

A BODY WAS FOUND floating in the Chubut River on October 20, 2017. The river, slow-moving and shallow, runs through the Patagonia region in southern Argentina. Its name comes from a word in the Tehuelche language that roughly translates to "transparent." In the previous two months, the waters had been searched three times.

On that day in late October, the authorities finally found what they had been looking for—and what the nation had been asking for. His name was Santiago Maldonado, and he had been missing for 78 days.

Three months earlier, on August 1, Santiago Maldonado was at the Lof de Cushamen, a camp not far from the Chubut River. The base was set up by activists to demonstrate in support of the land rights of the indigenous Mapuche people. Santiago's face, dominated by a long, scruffy beard, was hidden under a hood; he, along with seven other protesters, blocked the National Route 40 highway. The Argentine Gendarmerie, an elite police force under orders to intervene, disrupted the protest.

When the police started firing rubber bullets and launching stones, Santiago fled with other protesters into the forest and the nearby river. A young demonstrator stated in his trial that he and Santiago were running together when he suddenly lost sight of Santiago. Shy and scared, the demonstrator told the judges that he had last seen Santiago alive in the hands of the gendarmerie.

Santiago Maldonado went missing. Over the next two months, his name became a charged, political anthem. Social media erupted in indignation and his picture was plastered on sidewalks, bus stands, and government buildings, accom-

panied by the words, "¿Dónde está Santiago Maldonado?" *[Where is Santiago Maldonado?]*

The case gripped the nation, making its way into even the most unlikely of arenas.

"In schools, in classes with children as young as ten years old, teachers would conduct roll calls and would repeat the last name Maldonado in order to make a political statement, as if to press the question of where he was…the same goes for waiting rooms in hospitals," said Adrian Bono, CEO of the Buenos Aires-based digital media company, The Bubble, in an interview with *The Politic*.

On October 1, more than 3,000 people assembled in the Plaza De Mayo in Buenos Aires to demand that Santiago be found.

"¡Ahora, ahora! Resulta indispensable, justicia por Santiago, el gobierno es responsable," they chanted.

[Now, now! It's indispensable, justice for Santiago, the government is responsible.]

Forced disappearances are rare in Argentina today, but the slogan reminded many of Santiago's compatriots of a not-too-distant past. After a 1976 coup, a right-wing military junta controlled Argentina by brutally repressing dissidents. One of the most infamous (and popular) methods used by the regime's death squads was to sedate resisters and drop them from planes into bodies of water.

Once Santiago's corpse was found floating in the Chubut River, the nation tensely awaited the results of the autopsy and any other relevant information from the government of President Mauricio Macri. Santiago Maldonado, a previously unknown tattoo artist from the small town of Veinticinco de Mayo, was to become the barometer of Argentina's democratic progress.

FOR ARGENTINES WHO remember the old junta rule, distressing memories have resurfaced with the disappearance of Santiago under Macri's conservative administration. Nearly a quarter century has passed since the military junta fell from power. Beginning in 2003, a socialist couple, Néstor and Cristina Kirchner, each served as president of Argentina successively. But the hegemony of leftist Kirchnerism ended with the 2015 election of Macri, who identifies with the center-right.

Bono from The Bubble emphasized that the Argentinian right should not be equated with its American counterpart.

"Center-right here means a government that still does believe in climate change and supports marriage equality," he told *The Politic*.

But the memories of the junta still worry Argentines who consider the current government conservative. Beatriz de Lezica, National Director for Argentina's Ministry of Culture, told *The Politic* in an interview: "We are all a little bit traumatized," and, referring to the NGO founded in 1977 to find people abducted at the hands of the military dictatorship, added, "the Grandmothers of the Plaza de Mayo are completely entitled to feel trauma because they saw the loss of family and people close to them, but even those people like me who were quite small, I am also quite traumatized. We are afraid of violence."

As the case unfolded, Argentina prepared for its midterm elections, and Cristina Kirchner, as an opposition leader running for a Senate seat, called out Macri for his apparent apathy towards Santiago's disappearance. In an interview in September, Kirchner reminded the nation of her and her husband's response to the 2006 disappearance of Jorge Julio López, who went missing after testifying in the trial of a junta-era police commander.

"Néstor spoke to the country about Jorge Julio López immediately; it has been 43 days and we did not hear a single mention about Maldonado from Macri," said Cristina Kirchner.

"I'm going to say something very politically incorrect, but I believe that the Argentinian people didn't actually care at all about Santiago's disappearance."

Many interpreted the president's silence as evidence of a guilty conscience. To those protesting Santiago's disappearance, "El gobierno es responsable" was not only a call for accountability but an expression of alarm that Macri's administration may not be in line with democracy.

Activist groups played a key role in rallying awareness of Santiago's case. One of these groups was established during Argentina's junta rule: the Grandmothers of the Plaza de Mayo. They helped organize the October 1 rally where demonstrators accused the government of having a hand in Santiago's disappearance.

"The city of Buenos Aires had three or four rallies, the most important one was at the Plaza de Mayo…3,000 people is a lot in our country," said Alan Iud, the coordinator of the NGO's legal department, in an interview with *The Politic*. "There were demonstrations in most of the major cities in Argentina."

The Grandmothers confront the ugly aftermath of the junta on a daily basis and the organization is anxious that Santiago's disappearance might mark the return of repressive policing in Argentina.

Iud, awaiting the final results of Santiago's autopsy, told *The Politic:* "Even if it turns out that he was not taken into custody, there is still the responsibility of the security forces."

"One case is worse than the other, but we need to understand that these kinds of deaths and these kinds of disappearances are not possible under a security force that works well," he continued. "There is a responsibility of the police in this disappearance of Santiago that demanded two months to find his body."

Amid the tension ahead of the midterm election, the disappearance became a significant campaign issue.

This anxiety manifested itself during Santiago's autopsy, de Lezica said.

"We didn't trust the justice [system]. Nobody was allowed to touch the body until there were specialists chosen by the family, by the Abuelas [Grandmothers], by the government… there were fifty-five experts that travelled with the police as they took his body from the river. In the autopsy room, nobody was allowed to perform without all fifty-five experts being in the room," de Lezica explained.

But even before his dead body was discovered, Santiago had acquired a transcendent quality. As the Grandmothers said in a public statement: "For him, for his family, for the future, we say memory, truth and justice."

ON OCTOBER 22, Argentina midterm elections took place—just two days after Santiago's body was identified. The results were unexpectedly in Macri's favor. While he was unable to get an outright majority, his supporters picked up key seats in parliament. The result shocked Kirchnerites and those who had turned out by the thousands to protest Santiago's disappearance.

Santiago's story now required a new narrative: How did an "undemocratic" administration under which a man went missing harness the support of the Argentinian people?

Bono had a simple answer.

"I'm going to say something very politically incorrect," he told The Politic, "but I believe that the Argentinian people didn't actually care at all about Santiago's disappearance."

The autopsy did little to solve the mystery surrounding Santiago's death: It found that Santiago had drowned and that his body had been in the river for the entirety of the two months since he disappeared.

The results were up to political interpretation. To Macri's supporters, Santiago drowned—as his family confirmed, he could not swim—in an attempt to escape the Gendarmerie. But to others, Santiago had been taken by the police and his body was later dumped in the river. His blood, therefore, was on the authorities' hands. "Santiago's was a case that showed how divided Argentinian

society was," said de Lezica.

This second narrative fits with the theory of a targeted assassination, but one key question remains unaddressed: Why Santiago? If Macri's government had plotted Santiago's disappearance and death, why did they choose him and not any of the other seven protesters blocking the highway that night?

For Bono, the answer is no reason at all.

"I'm on the fence over the fact as to whether he may have been taken by the border patrol," Bono said. "But to go out and say that the president ordered the assassination of a guy that he didn't even know or hadn't even heard of before—like, he wasn't a leader of a violent group, he was just a guy who decided to join a protest that day—and to use that to have a large part of the population come out and say that the dictatorship is back is insane."

Bono argued that leftists' labeling of Macri's government a dictatorship is "only pissing people off more and this is my fear." He continued, "This is why Donald Trump won in the United States. My fear is that people are taking things to such an extreme the average Argentinian will no longer consider Macri right-wing enough in 2019."

He quoted his mother as an example of a *Doña Rosa*—the Argentine equivalent of the Average Joe. "[My mother] said, 'Enough with the human rights bullshit.' The Macri administration sucks at handling or cozying up to human rights activists not because they are against human rights but [because] they feel that Cristina Kirchner has made such a crusade of human rights," Bono explained.

But De Lezica believes that Santiago's prior anonymity is exactly why his case has caught the public attention.

"He was a boy at the wrong place at the wrong time. They were not targeting him," de Lezica said. "He was an artisan, he made tattoos and he decided to join a protest that day."

De Lezica has a son who is nearly the same age as Santiago. "It could have happened to anyone," she said.

It is unlikely that anyone will figure out what exactly happened to Santiago. In the absence of definitive evidence, his death has become a persuasive device for telling two divergent stories.

"We are living in a post-truth world where you believe what you want to believe," said Bono. And in this world, Santiago Maldonado has disappeared. What replaces him is a version of a man, with his face and his name, who transforms to align with the agendas of those who use him. To some, the new Santiago—a martyr—is a symbol of Argentina's future. But the real Santiago Maldonado, the tattoo artist from Veinticinco de Mayo, has been lost, submerged under the waters of the Chubut River.



UNDERWATER FARMS

THE EAS' OYSTER IN FORTIFIES AGAINST A CH ENVIRO

BY **LINA VOLIN**

"We came within a nanometer of going out of business," Bill Mook remembers. As the owner of Mook Sea Farm, a shellfish hatchery in mid-coast Maine, Bill just barely averted disaster. "I started the year with nine or ten employees. By the end of fall, I was down to three."

He was desperate to discover what was making his oyster larvae incapable of metamorphosis, which was leading to zero output. And so, he decided to embark on a month of nighttime investigations. He donned black clothes, turned off his headlights while parked on the side of a nearby highway, and scoured the area around his hatchery with a red-lens flashlight. At the hatchery's water source, he finally stumbled upon the answer.

"My neighbor, who owned a septic tank-pumping business, was illegally dumping waste within about 100 to 150 yards of our intake. He was doing it on a frequency that interfered with every single spawn that we did for the entire year," Bill recounts. One private investigator and a lawsuit later, Mook Sea Farm recovered and continued as it had since 1985, producing oyster seed for shellfish farmers up and down the East Coast, from North Carolina to Maine.

But eleven years later, in 2009, the oyster larvae in the Mook Sea Farm hatchery slowed down again. This time, no one was dumping sewage into the body of water that fed the hatchery. After a season spent expending enormous effort to coax the larvae into metamorphosis, normally a swift process, Bill began to investigate this newest mystery.

A clue arrived when two oyster farmers from the West Coast visited Bill's farm. One of the farmers, who oversaw a hatchery in Oregon, reported that his hatchery's seed production had recently dropped by 70 to 80 percent. In comparing stories with Bill, the farmers realized that their larvae had exhibited similar symptoms. At the West Coast hatcheries, they had determined that the devastation was due to offshore winds, which caused an upwelling of acidic water. The resulting acidity was causing massive problems for the oyster larvae.

The problems at Bill's hatchery were much like the West Coast ones—but the source of acidification was different. In his case, the acidic water hadn't come from upwelling; instead, it was the result of a combination of runoff from rainfall—which had been frequent in the spring of 2009—and increasing carbon dioxide levels dissolving in the ocean.

"The net effect of all of it combined was that we were experiencing ocean acidification," he says.

This episode of struggling larvae and environmental deterioration served as a stark reminder: the oyster industry depends, to a remarkable degree, on clean water.

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PHOTOS BY **LINA VOLIN**

When I set out to learn more about the East Coast oyster industry, I knew very little about it. I abandoned my plan for a pretty profile of what struck me as a quintessential New England business soon after encountering stories like Bill's. How was his hatchery's decline explained by the interactions of environmental changes, state regulations, and internal changes within the industry? Was it a trend replicated across oyster farms? The questions only became more complicated with the unknowns of climate change, and I wondered: How are oyster farmers responding to all of these changes?

I started, though, with a smaller question. Where do oysters come from? Of the two types of oysters—cultured and wild—the former all originate in the same place: a hatchery.

This story starts at the hatchery of the Fishers Island Oyster Farm, owned by Sarah and Steve Malinowski since 1987. One of only a few hatcheries that serve the approximately 400 oyster farms on the East Coast, the Malinowskis' hatchery is accessible

by a ferry service that shuttles passengers between Fishers Island and the mainland several times a day.

One morning in late October, I sit at the front of the ferry near a group of four middle-aged men going golfing. They confirm my preconceptions of the island: a less-touristy version of neighboring Block Island, the sort of summer refuge for New Englanders who have passed down family houses for generations. I spend the forty-five minutes on the ferry listening to their conversation about summer homes and holidays in Europe and trying to remember if I have ever eaten an oyster. Upon deciding that I have not, I meet Sarah Malinowski at the ferry drop-off. On our way to her house, we pass rows of cottages in the mottled shingles native to sleepy coastal towns like Wood's Hole and Narragansett.



We turn into the driveway and park in front of a low, squat building beside their house, which overlooks the harbor. Sarah points to the smaller building, a former dog kennel.

Later, when Steve takes me on a tour, he points to the discolored grooves on the cement floor, where the individual stalls used to stand. In their decades of running an oyster farm, the Malinowskis have refurbished the kennel into a hatchery capable of producing 40 to 50 million oyster seed per year. The seed is two to three millimeters across by the time it exists the hatchery. But the journey to those three millimeters is hardly simple—each step of the highly regimented process requires supervision.

Steve starts the tour in a room containing the water pump responsible for the 7,000 gallons of water that get drained, reheated, and refilled every day. The first step of the process happens here, in the tall cages lining the walls, where the oyster's food, phytoplankton, is stored. It takes about a month to produce concentrations of phytoplankton that are high enough to feed the hatchery's oysters.

Steve leads me to the next room, where there are several large basins. They are empty now, but by the first week of December, they will house the all-important parent stock of oysters. Steve and his team bring in 200 adult oysters as the parent stock, chosen from the one million oysters that the farm cultivates in the harbor. Selection criteria include shape, size, and color, and a deep, round cup.

"It takes two to three weeks of holding them in warm water, feeding them a ton of food, to essentially trick them into thinking it's July," Steve says. The team uses temperature stimulation to help the oyster spawn, fifteen at a time, before it puts the fertilized eggs in tanks.





I follow him into another room where several large cylinders occupy most of the space. Steve taps the side of one and it rings, hollow and metallic. The oyster larvae grow in these tanks for two to three weeks, swimming constantly.

At the start of the larval stage, there are 20 million larvae in each tank and in the days following, Steve and his team cull them until there about five million in each tank. Bill Mook's oysters stopped growing during this larval stage both times his farm went into crisis mode. The first time, not a single oyster passed this stage, inexplicably frozen in the midst of its transition.

The larval stage is pivotal—by its end, the oysters must be ready for metamorphosis in order to enter the last phase of their hatchery life.

"When they go through metamorphosis, it's just as dramatic as a butterfly and a caterpillar," Steve says. His enthusiasm is evident, though I can't quite believe that the metamorphosis of near-microscopic oyster larvae is reminiscent of a chrysalis unraveling to reveal a brilliant, dewy monarch.

The larvae, capable of propelling themselves through the water, eventually find a spot to "set," or affix themselves onto bits of shell. Steve's team grinds down the shells until each grain is the size of the larvae, so only one larva can fit on an individual grain. In the 24 hours following attachment, "the oysters explode in size, develop a gill, and essentially become miniature adults. They'll never move again for the rest of their lives," says Steve, which strikes me as rather dramatic after all.

Upon graduating from the hatchery, most of the seed is transplanted to the Malinowskis' nursery, a salt pond just minutes up the road. The nursery is an intermediate stage in which oysters grow from anywhere between half an inch to almost two inches. At that point, they can be deposited into the farm itself, out in open water, where they will grow to market size. Since most oyster farmers do not have their own nurseries, they purchase the Fishers Island seed post-nursery.

For the next stage in the life of a cultured oyster, I travel to Bridgeport, Connecticut to meet Charles Viens, the owner of Charles Island Oyster Farm and one of the few producers in the state with his own nursery. Floating in the Yellow Mill Creek, Viens' nursery shares the riverside with gray apartment buildings and a handful of commercial properties. A bridge clogged with noontime traffic crosses the river a couple of miles down. The setting is far from the serene pastels of Fishers Island.

I follow Viens down onto the dock, where a floating mass of cages is tethered to the wood.

"We get all our seed from Fishers Island. Steve's the best around," he says, his rapid gait sending me hurrying over the uneven planks. "We bought two million this year and two million last year."

The seed goes in silos that are stored under the dock until the oysters are 1.5 inches across. A pump pushes water consistently over the top of the oysters, the continuous movement tricking them into growing faster. When they reach 1.5 inches Viens transfers them into bags to fatten them for the winter. Like the seed grown at Steve and Sarah's salt pond, the oysters developed in this nursery are consistent in coloring, size, and shape, a product of their regulated origins.

But these perfect oysters, bought from hatcheries like the one on Fishers Island and painstakingly curated in controlled environments like the Charles Island nursery, are not the industry norm. Farmers have different reasons for engaging in this intensive process. For Viens, the decision to cultivate cultured oysters is predicated in large part on shifting consumer preferences—it's all about taste profiles and marketing.

"Long Island Sound is more brackish and produces a less salty oyster than Maine," he explains.

Increasingly, consumers favor smooth, round textures, most reliably found in cultured oysters like those from the Bridgeport nursery or Fishers Island. "It'll keep going in that direction," he predicts, and he plans to continue increasing the proportion of cultured oysters he produces.

Still, Viens' cultured oysters are not the norm. At this point, most of Charles Island Oyster Farm's product and the great majority of oysters that go to market are "wild" oysters. Charles Island's wild oysters come from seed that the crew obtains from natural beds and transplants to their lot, 28 acres in the Long Island Sound. There, the wild seed collects on the ocean floor and grows alongside the cultured oysters, many of them in cages.

To get a better sense of this process, responsible for the majority of oyster production on the East Coast, I join a Charles Island harvesting crew early one morning. We leave from a marina in Milford, Connecticut on a former lobstering boat named *The Mohawk*. The crane-like contraption affixed to the front of the boat is a dredge—the piece of equipment that most producers in Connecticut use to harvest oysters. The dredge has teeth that get just under the surface of the ocean

floor, pushing down against it and scraping along its top layer.

I spend most of my time in the tiny cabin at the back of the boat, watching the proceedings from the relative comfort of the captain's swiveling chair. The captain of the boat is Joe Kowalsky, a young but seasoned oyster boat captain who Charles Viens describes as his right-hand man. In a royal blue Charles Island Oyster Farm T-shirt, Joe stands before the cabin window with an e-cigarette in one hand and the steering wheel in the other. A plaque on the door to the cabin proclaims "When everything else fails, try doing what the Captain suggested." Another one near my elbow is engraved with "The Captain is always right."

When we arrive at the lot leased to Charles Island Oyster Farm, near the tiny, uninhabited, eponymous island, Joe picks a spot using the boat's GPS. We circle for hours as the dredge enters the water, scoops up a heap of oysters, and deposits the pile on the table. The deckhands get to work chipping clusters apart and sorting the individual oysters by size, wearing protective all-weather gear and thick rubber gloves. Despite the gloves' bulk, the deckhands easily go through two pairs a week due to the oysters' sharp edges.

While they work, Joe delivers a crash-course on the Connecticut oyster industry.

"Wild oysters are not a nice, peaceful farm. It's like the Wild West, with guys stealing from each other," he declares. I look around, doubtful. *The Mohawk* is bobbing on fairly calm waters, all other boats just an afterthought on the horizon. Even the beach cottages on the shore are closer to us; it is exactly the sort of place I would describe as a nice, peaceful ocean farm.

That's because we're not on the public beds, Joe informs me. We are on private land—the Charles Island Oyster Farm lot—and the wild oysters being harvested right now were taken from public land and deposited here, out of reach of any other oyster harvesters. The public oyster beds, like those in the nearby Housatonic river, are owned by the state, which regulates when they are opened or closed for harvesting. The bed on the Housatonic, one of the biggest oyster beds in the area, has been closed for a year and is set to reopen the weekend after my trip to the Charles Island site.

Joe is obviously frustrated by the closure, which can interfere with oyster harvesting. He joined the shellfish commission in Stratford, Connecticut, which has jurisdiction over the Housatonic river, to become more involved in the regulatory process.

A few days after my conversation with Joe, Tessa Getchis, an aquaculture extension specialist with the Connecticut Sea Grant, describes to me the criteria that dictate closures.

"There are a couple areas in the state where they are currently closed due to some sort of pollution and, in some cases, that pollution source might not be there anymore," she explains. "But the area wasn't tested because the state has finite resources," and the certification for harvesting from the public oyster beds requires many rounds of testing and a dataset that accounts for water pollution across different weather conditions and seasons.

But out at the Charles Island's farm, we are at a different stage in the process. The market-sized oysters that *The Mohawk*'s crew are harvesting have grown significantly from the seed that was transplanted from the public beds. After processing, the deckhands will bag them and put them in the cooler to be shipped to restaurants upon docking. An average day will net the crew 50 to 60 bags, with 100 oysters in each. These are wild oysters, ready for sale.

The differences between wild and cultured oysters go beyond the rougher appearance of the former. A central distinction is the harvesting operations. The tranquil floating cages of the nurseries are the standard for cultured oysters, grown in the cages' relative protection. The wild oysters mature on the ocean floor and are collected by a dredge.

Joe calls the dredge a necessary evil. Steve, at Fishers Island, avoids dredging entirely, which he can do because he only harvests oysters that have come out of his hatchery. He uses floating gear, a network of suspended cages, so the oysters do not settle on the bottom.

Steve describes the dredging used by most companies as part of a process called extensive farming.

"They do it the same way that it's been done for 150 years, which is to dump shell into estuaries. Some of the wild oyster larvae in those estuaries will set on the shell pile," he explains. "They'll leave it there for a year or so, and then they'll go in with a big boat, dredge it up, and move it to another part of the Sound, where they'll let it grow to maturity."

Steve practices intensive farming, a strategy that uses some sort of structure, like his floating gear. He takes me out to the grow-out site in Fishers Island's West Harbor, where the

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farm harvests one million oysters coming out of the hatchery and salt pond nursery. I follow him onto a small motorboat tethered to the dock behind his house.

"This is known at the farm as my boat," he tells me as we hop in.

"Does she have a name?" I ask.

He grins. "Steve's boat."

Steve's boat putters out of the cove and into the harbor until we reach several lines of submerged nets waving with the current. The farm's suspension culture is key to the environmental sustainability that Sarah and Steve are so proud of.

"It's as if, instead of clearing the forest to plant a field of crops, you have the field of crops above the forest, so you have both the crops and the forest co-existing," Steve says. "You never impact the bottom or the forest that's growing below it."

Proud as he is of his farm's techniques, which he sees as the most sustainable in the industry, Steve praises all oyster farming.

"What's important to keep in mind is that every kind of oyster farming is a net positive," he says.

I wonder, then, if there is a meaningful environmental difference in the type of dredge harvesting required for wild oysters and the intensive farming favored for cultured oysters.

One of the largest oyster farms on the East Coast, Norm Bloom and Son's Copps Island Oysters uses dredges for nearly all of their harvest. I head to one of Copps Island's sites in New Haven to meet Patty King, a current clam boat captain and former oyster boat captain who has worked with the company for eighteen years.

The *Jeanne Christine*, a 120-foot shell boat docked at the site, looms over us. It is a huge boat, larger than any I have seen at other oyster farms,



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and it is used to dump giant mounds of dry, clean shell on sites that the company owns all around Long Island Sound. The oysters spawn naturally on the shell beds they create.

"We're just helping Mother Nature along," she remarks cheerfully while we walk to the experimental hatchery at the site, opened a year ago. Patty says they are in the trial and error stage, trying to replicate successful results on a larger scale. "But we're mostly wild farmed oyster right now," she is quick to clarify. "The best way is Mother Nature. You can't duplicate it."

The hatchery, she says, is a backup, in case of devastating events like the two recent East Coast hurricanes.

I ask Patty about her thoughts on the dredging that the company uses to harvest wild oysters: is she worried about lasting environmental impacts?

She points me in the direction of a study conducted by the National Oceanic and Atmospheric Association in 2011, which examined the potential effects of shellfish dredging on ocean environments. They couldn't find a significant difference, she says, between different machineries used to harvest oysters. When I checked that study later on, I found that it concluded that the potential negative effects of shellfish dredging are typically short-lived. The authors write that shellfish cultivation via dredging can be sustainable when long-term effects on the ocean floor are mitigated by "a combination of selective harvesting practices" including "careful site selection" and "seasonal harvesting…to allow time for recovery."

In light of this evidence, oyster farming of all types, extensive and intensive, large-

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scale and small-scale, appears extraordinarily sustainable. An acute awareness of the industry's dependence on a healthy environment seems embedded in the practices and philosophies of the oyster farmers I have spoken to. But there is another side to the industry.

In public oyster beds like those that were temporarily closed in the Housatonic River, some harvesters' environmental awareness is lacking.

"Those guys ground down lots of natural beds until they're worthless," says Joe while we are out on *The Mohawk*. "When the lobster industry died off all those guys came over, and they work as fishermen. They work it, catch all they can, and then move on to the next thing."

When he first started in the oyster industry, Joe worked for one such company. While that work was more personally profitable, he knew that if he kept working in that way, the oysters would disappear.

"This is what I want to do, and it's going in a downward trajectory. I need to work towards changing it, so I can keep doing it," he says. "There are fewer and fewer natural beds available and tighter and tighter rules and regulations. And once it's gone, it's gone."

The unsustainability of that kind of harvesting drove Joe to join the Charles Island Oyster Farm. "It's more like a farm than a company. We try to make sure there's always something for the future," he says.

In addition to being more environmentally friendly, the farm's combination method of raising their own oysters and cultivating wild ones, as well as avoiding over-harvesting in certain areas, tends to be economically profitable in the long-term.

"They ask how a guy with twenty-eight acres stays in business?" Joe says. "The reason we can stay in business is that we're farmers, not fishermen."

I am still trying to figure out the difference when I meet with TJ Londregan, the owner of the Niantic Bay Shellfish Farm (NBSF). Floating on the Niantic River, just west of Mago Point and on the other side of Hole in the Wall Beach, NBSF is a newcomer to the industry, founded in 2013.

After a childhood spent lobstering with his grandfather in this very bay, TJ spent three years at Fishers Island Oyster Farm learning the oyster farming business from Sarah and Steve. Like them, he farms only cultured oysters, which he obtains from seed coming out of Fishers Island's nursery.

"It's kind of like craft beer. Are you going to drink craft beer or Budweiser?" he says about the difference between cultured and wild oysters.

Despite TJ's efforts, breaking into the shellfish industry has not been easy, and his main troubles are regulatory, particularly with respect to permits. He has been waiting on one lease for three years.

"Connecticut is behind the curve in aquaculture," he says. "We have a less developed program. There are only 22 oyster producers in Connecticut, and there are a lot of barriers to entry."

He is not the only oyster farmer to mention the oyster industry's high level of regulation—every farmer I meet speaks about it at length.

"We feel our industry is the most highly-regulated food industry in the United States right now. You're much more likely to get sick from eating lettuce than you are from eating an oyster," Sarah Malinowski says. "The perception is otherwise, and I think it's because we're so highly regulated."

Charles Viens also mentions the regulations.

"We're at the mercy of the state," he says. "We're very highly regulated. They regulate my boats. They regulate my dredge sizes."

Part of the difficulty, according to TJ, is that the state has many rules in place for oyster farmers but finds it increasingly difficult to enforce those regulations and approve oyster farms, due to a chronic lack of resources. As this point, TJ says, if the Bureau of Aquaculture—the state authority that oversees most regulations related to oyster farming—does not get enough funding, they will not have the staff to run samples, like water quality and meat samples. Without that sampling, the whole Connecticut shellfish industry will shut down.

"If there are no samples, there are no sales. If there are no sales, we're going out of business," he says.

Patty King, too, mentions the importance of consistent regulatory work to ensure shellfish harvesting can continue. At a recent shellfish farmers meeting convened by regulators, she says they were warned that there was not enough staffing, primarily due to budget cuts.

"They warned us that they don't have the same scientists to do all the tests they used to," she says.

In an email, David Carey, Director of the Connecticut Bureau of Aquaculture, tells me that "the Budget is under continuing cost reduction measures but it has not significantly impacted the

regulatory nature of our work to date." A decrease in funding would, however, have a major impact on shellfish operations in the state given the monitoring required to ship shellfish interstate.

"The National Shellfish Sanitation Program Model Ordinance requires very strict monitoring and inspection of all harvest, boats, facilities, and trucks," he writes. "Staff must identify and assess the impact of all potential and actual pollution sources within watersheds impacting shellfish growing areas."

If there are any reductions in the workforce's capability to carry out the necessary procedures, then there could be more of the site closures that directly impact shellfish harvesting and commercial operations. But Carey notes that "the Department has not faced this situation at any level of significance."

State oversight and regulations are clearly a major part of the industry, providing the framework in which all farms, regardless of size and methods, have to operate. In addition to regulations, all oyster farms depend in large part on the environment. I return to the distinction Joe drew between fishermen and farmers, seeking to understand the ways oyster harvesters respect and cultivate their relationship with the environment. There are varying extents to which oyster farms can be integrated into their surroundings, and some of them are at the forefront of an already sustainable industry. But as Bill Mook recounted in the disaster that struck his farm, the relationship works both ways. If the environment has a profound effect on oysters, then what do environmental changes mean for the industry?

For answers, I first turn to Chester Arnold, Co-Director of the University of Connecticut's Center for Land Use Education and Research (CLEAR). He points to the nitrogen coming into the Long Island Sound as a major concern for the shellfish industry.

"We're now at a point where runoff—which is mostly urban runoff in our area, not agricultural—is the largest single source of nitrogen going into the Long Island Sound," he says.

Areas characterized by high levels of artificially added nitrogen can develop into dead zones—environments with no oxygen. Large amounts of nitrogen create blooms of either macro algae or phytoplankton, which eventually settle to the bottom, where the bacteria start feeding on them. There is so much biomass that the bacteria use up the oxygen.

"One way to get rid of that phytoplankton is to have a lot of filter feeders," Steve explains. The phytoplankton are food for the filter feeders, which, in areas near shore, tend to be predominantly shellfish.

"Not only are we adding all this nitrogen, but we harvested all the shellfish that were there," he says.

Sarah is quick to clarify her husband's words. "Others did. We didn't."

"Right, we didn't," Steve agrees. "We're not fishermen, we're farmers."

Runoff creates more problems than just nitrogen levels. "The septic systems and sewage system get overloaded due to the rainfall," Steve explains. "There are also certain areas, including most of Connecticut, where if it rains an inch they close it down. Here, right across the way, there's a shellfish operation that gets shut down for a week at a time many times a year."

Runoff partially contributed to the crash in the lobster industry a few years ago, a downturn from which it still has not recovered. According to Joe, there are two main factors that explain the industry's collapse.

"First, the West Nile virus killed lobsters," he attests. "When the government would spray to kill mosquitos, the spray would get into the run-off and then into the lobsters and kill them. Second, there was an insane amount of pressure on the lobsters. From '99, to 2000, to '01, you could've walked to Long Island on top of buoys."

The delicate balance struck between between fishermen and the lobster population collapsed with the introduction of the mosquito spray.

"It happened literally in a weekend," Joe remembers. "They were gone."

New York State still authorizes the spraying, and Joe says his friends working in the lobster industry can see a direct correlation.

"If they spray on a Friday, and you get some rain over the weekend, you're getting dead lobsters by the middle of next week," he tells me.

While the oyster industry has not faced such a drastic event recently, oyster farmers—along with other shellfish farmers—are facing the looming threat of what Chester Arnold calls the x-factor: climate change.

"The interaction between pollutants and changing water temperature is something that nobody has a really good handle on," he says. "Most of the researchers I've talked to about the lobster industry crash think that water tempera-



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ture had a big role to play in that. The lobsters were more susceptible to various diseases and also possibly pollutants."

Bill Mook, from Mook Sea Farm, has responded in concrete ways following his brush with ocean acidification-induced disaster. He is in the process of building a 9,000-square-foot facility on his property, part of which will be used for further research. "We're looking down the road and preparing ourselves for anticipated climatic changes, changes in seawater chemistry," he says.

Following some of his findings, Bill changed elements of his hatchery process. "Every time we bring seawater in to do a water change for our larvae, we have to buffer it. A buffer would be like putting Tums in the water—basically, you're putting in carbonate ions to bring up the pH, so the larvae are able to make their shells better." It is an intensive process, as the water is drained and changed every two days and, every time they do a water change, they have to add the buffer.

While his hatchery—and other hatcheries experiencing ocean acidification—have successfully responded to this changing environmental factor, the sheer unknown of climate change makes it difficult to preempt negative impacts on the oyster industry.

"I believe these changes in seawater temperatures are going to continue, especially with the current administration in place," Bill says. "When I look at having my business survive, I'm looking for ways to diversify and be able to grow."

At Charles Island Oyster Farm's nursery, I watch the cages of oysters glistening on the surface. I think about these cultured oysters, part of the environmentally friendly frontier of an industry already sustainable and profitable, which so many other industries protest is an impossible combination. I think about the many conversations on regulations and environmental changes I have had with representatives from large established companies and small boutique ones. I think about the industry's dependence on a healthy environment and the farmers' dedication to sustainable oyster farming, and I understand, now, the difference between farmers and fishermen.

There are oysters, bizarrely, improbably, bobbing in the waters of a channel cutting through urban Bridgeport. They are filtering and feeding in the currents, making this pocket of water just a little clearer, just a little cleaner.



A SEAT AT THE TABLE

New Haven Activists Fight Food Insecurity

BY **TRAVIS DESHONG**

KIMBERLY HART AND her son didn't have enough to eat. Unemployed since 2013, Hart has depended on the Supplemental Nutrition Assistance Program—colloquially called SNAP, or food stamps—to feed herself and her 15-year-old son, Arthur.

She became a food policy activist, starting with a photo campaign by Witnesses to Hunger, a Philadelphia-based organization that inspires direct action among low-income parents and caregivers. She put a picture of Arthur at dinnertime on public display; in it, he stares at the camera, with a peanut butter and jelly sandwich, a bowl of ramen noodles, and a Solo cup of water. He's quoted in the caption: "Really, Mom, no meat?"

The two of them live in a multiple occupancy home in the Dixwell neighborhood of New Haven. Technically, the area doesn't qualify as a food desert (for that classification, at least 33 percent of the local population needs to be more than one mile away from a supermarket in an urban area). But Hart and many of her neighbors still struggle to make ends meet: They are among the 400,000 Connecticut residents and 45.4 million American residents reliant on food stamps.

Food insecurity is an urgent issue both locally and federally. Community groups, food banks, and other local organizations are pressed to supply resources for the poor in cities across the country. Hart and others like her testify at the state and national level, detailing their daily challenges so policymakers learn how their decisions affect people's lives.

"If I can tell you that this policy isn't working," Hart said, "then now we have a conversation going. I believe that if you don't have a seat at the table, then bring your own chair."

I TOOK ONE LOOK at Hart's nearby food options, and the limitations were readily apparent. At the corner of Sherman Avenue and Whalley Avenue sits Sam's Food Store, a deli that boasts a three piece chicken-biscuit combo, jumbo shrimp, and Krispy Krunchy chicken sandwich on the images in its display windows. Across the street

is a Mobil gas station and minimart. A Best Gas gas station stands farther down the block facing a KFC. The next block features two pizzerias, a Dunkin Donuts, and the L&A Mini Mart.

Minore's Market is a four minute walk from the Sherman-Whalley Avenue intersection. The larger Stop & Shop is only eight minutes away on foot. But Minore's Market primarily features frozen vegetables and meats, which are less nutritious than fresh produce and cuts because of the freezing and canning processes. What's more, Minore's Market's selection of fresh produce is rather limited; a lot of the food I found in that section was already a couple of days past its sell-by date.

Stop & Shop is a pricier option for the food insecure. Nature's Promise Organic baby spinach and green beans will cost you ten bucks, and that's when they're on sale. Joy Johannes, the New Haven Food System Director, informed me that a single household receives about 198 dollars a month in food stamp benefits. Fifty dollars per week only goes so far.

New Haven residents are particularly afflicted by a lack of access to healthier foods. The 2017 "State of Hunger in New Haven" report found that 22 percent of the city's residents are food insecure, compared to a Connecticut rate of 12 percent. In New Haven's lowest income neighborhoods, one in three adults is food insecure. Dr. Marlene B. Schwartz, director of the Rudd Center for Food Policy & Obesity and a professor at the University of Connecticut, pointed out that class continues to be a fundamental factor linking food security to health concerns.

Connecticut has seen the number of lower-paying jobs, particularly in the service sector, grow by the tens of thousands. Bernard Beaudreau, CEO of the Connecticut Food Bank, contends that this trend does not help the food insecure. "Those jobs," he told *The Politic,* "their median wage is only about 21,000 dollars a year, 50 percent of the overall median. That is not enough to live here, buy good food, pay bills."

NEW HAVEN HAS taken steps to address food insecure residents' distress. The city's Food Policy Council is a voluntary advisory board of 11 members that the Board of Alders and the mayor appoint. The Council also has a list of affiliate member groups, including the Cornell Scott-Hill Health Center, CitySeed, and the Yale Sustainable Food Program, that provide input to relevant policymakers and coordinate on various outreach projects. CitySeed, for example, provides cooking classes so that younger generations can learn how to prepare more nutritious meals.

I asked Kimberly Hart how the community representatives fit into the Food Policy Council. Hart replied that it was her job to put a face to the numbers detailing low food access. She once told them about her experiences at food pantries and how difficult it is to get what she needed to finish out the month.

"If I want to get the good eggs, or the ribs, then I have to be one of the first 15 or 20 people there," Hart explained. Going to food pantries requires strategic thinking. "If I'm at the pantry two hours before it opens, then I'm too late. This is rain, shine, sleet or snow. This is summer, winter, spring and fall. Some pantries open every third Tuesday or every fourth Wednesday. And sometimes I'll forget. I'll go to Varick [AME Zion Church Food Pantry and Soup Kitchen] and see no one in line as I'm rounding the corner. I missed it. Now what am I going to do?"

Hart and others wonder what the federal government will do. Depending on what the current administration and Congress decide regarding funding to WIC and SNAP, local networks of food banks, community organizations, soup kitchens, city governments, and activists may be further strained in their ability to help food insecure residents.

"I believe that if you don't have a seat at the table, then bring your own chair."

Beaudreau and those at the Connecticut Food Bank are very concerned that the current administration aims to cut federal benefits. "The cash dollar value of the benefits that are received by SNAP recipients in Connecticut is about 700 million dollars a year," he explained. "The administration has proposed that we cut that by 25 percent over the next ten years. That would mean many billions of dollars lost in purchasing power."

The cash value of all the food the Connecticut Food Bank and the other major state food bank, Foodshare, distribute is 70 million dollars, or ten percent of SNAP's value. Maintaining a reasonable balance between how much the federal government can provide and how much local actors can provide is critical.

The "State of Hunger in New Haven" report shows that many community organizations already operate on shoestring budgets with limited human resources, mainly pools of committed volunteers. Variation between emergency food programs results in a dedicated yet fragmented system that can confuse food insecure residents. Understanding the many services available is even harder for people with low levels of education or limited English ability. The report found that Hispanic and Latinx New Haven communities especially bear the greatest burden of food insecurity.

"We're vigilant about reminding our elected leaders that the SNAP program is absolutely essential," Beaudreau insisted. "Unfortunately, we're seeing the need for food assistance grow in Connecticut."

Washington policymakers debate the benefits that SNAP participants should receive. While the massive federal program does have food eligibility guidelines, there are no rules outlining nutritional standards. Food insecurity advocates themselves may actually oppose such standards. A centralized set of standards could create a paternalistic and condescending relationship between the federal government and those in poverty. Creating nutritional guidelines may do nothing to address the perception of SNAP beneficiaries as freeloaders.

"People on both sides who normally agree with each other are fighting about this," Schwartz said.

SNAP has other weaknesses. For New Haven residents surveyed in 2016, SNAP benefits ran out an average of ten days before the end of the month. For some, that time period can balloon to two to three weeks. SNAP operates with an income ceiling, meaning that if a recipient's hourly wage increases by even a small amount, they could fail to qualify for food support .

"If I had a job, like at Walmart, then God forbid they give me a raise or they promote me to the head cashier!" Hart exclaimed. "I'd be getting 3 dollars more an hour, and the first thing they do is cut my SNAP benefits. So you know what I would do? I wouldn't take the raise. I wouldn't take the promotion. That shouldn't be the case."

People also fear that other federal aid will be cut for low-income people who are food insecure. Even if their food assistance stays the same, their inability to pay for other utilities and expenses can affect how much food they can afford. Hart receives energy assistance for her heating bill, and therefore sees a reduction in her SNAP benefits. When the winter comes around, she and her son are faced with the choice of spending the night cold or hungry.

"We're vigilant about reminding our elected leaders that the SNAP program is absolutely essential."

"Stop making your budget on my back."

She spoke to me candidly. Half a decade of providing testimony has molded her into a resolute speaker, but that took time. She recalled that the first time she testified in Hartford she was terrified and vulnerable among so many people with power.

"I always cried in the beginning," she said, "because I was letting them in, to my world. My world, that they don't seem to give two cents about. I'm standing up there asking don't cut this. To please do something. Stop making your budget on my back."

ON NOVEMBER 12, I stopped by the Downtown Evening Soup Kitchen (DESK's) Sunday meal. Meagan Howard, the Program Manager, asked one of the guests to lead everyone in saying grace before the food was served. The volunteers dished out helpings of lasagna, quinoa, pork, salad, and desserts for each guest that came by with their tray. A group of Yale students offering to do bloodwork were stationed near the DESK Library, a bookshelf stuffed with donated texts from New Haven Reads, SCSU, and TPS Group.

A young woman saw me walking by and, knowing I was a reporter, asked if I wanted to sit down with her and her group. Her name is Gina, and she'd come with her boyfriend, her brother, and a friend she'd just met a couple days before. I asked if that Sunday night was the first time she'd been to DESK. She said no, sheepish for a moment before her boyfriend cracked a joke and her face lit up again.

She comes to DESK because she's homeless, living on the New Haven Green. Her goal at some point in the future is to go to college. Gina completed high school just last year, but while doing a fifth year schooling she decided to move in a different direction. We were all around the same age. Her brother reminded me of some goofy kids I know from back home. Less than two hours from that point, I was sitting in the Branford dining hall surrounded by people I knew. I could easily picture Gina teasing her boyfriend at the table behind me.

"We emphasize a principle of equity," DESK Director Steve Werlin told *The Politic*. "The people who come here as guests are no different from the people who come here as volunteers. Ultimately, we want both the guests and volunteers to come not because they feel they have to, but because they want to."

He also dislikes the narrow focus on food insecurity. "It runs the risk of putting hunger into a silo, that hunger exists and that's it. Hunger is a symptom of poverty. This is about people's inability to make a living wage."

"I'm good at it," Hart said, describing her political role. "But I'm not proud of it." Her voice trailed off. She took a couple seconds to collect herself. "If I had a job, a living wage, I wouldn't need SNAP. I wouldn't need the soup kitchens. I wouldn't need the food pantries. I could go to Shop Rite and Stop & Shop, like every other American, here in this country."

"that constitution will be no more!"

Trump, Jefferson, and Presidential Challenges to the Judiciary

BY **WILLIAM VESTER**

"THEY OUGHT TO LOOK into Judge Curiel because what Judge Curiel is doing is a total disgrace. Okay?" declared then-presidential-candidate Donald Trump at a June 1, 2016 campaign rally.

Trump insisted that Curiel was unqualified to preside over a fraud case against Trump University, because "He's a Mexican. We're building a wall between here and Mexico." (Curiel was born in Indiana.)

Since becoming president, Trump has continued his attacks on the judiciary. He frequently takes to Twitter to abuse the judges who block his policies, a strategy he has deployed in his efforts to win judicial approval of his travel ban.

Trump's diatribes against individual judges are one-of-a-kind, but presidential conflict with the judiciary is not new.

Donald Trump and Thomas Jefferson are, in temperament, experience, and belief, entirely different. Jefferson is honored at Mount Rushmore as one of America's greatest Presidents; Trump, most would agree, is unlikely to join him. But, like Trump, Jefferson waged a war with the judiciary during his presidency and sought to control the outcome of court cases by attacking individual judges.

There are also parallels in the opposition responses to each president's feuds with the judiciary. Like today's Democrats, the turn-of-the-nineteenth century Federalists were a minority in both houses of Congress under Jefferson. They tried to counter the president's attacks by using the press to warn that his actions threatened the principle of judicial independence.

When he entered office in 1801, Jefferson and his Republicans had firm control of the White House and Congress. But the departing Federalists had packed the courts full of their partisans, and Jefferson immediately came under pressure from his supporters to replace Federalist judges with Republicans.

Jefferson struck the first blow on February 4, 1803, when he asked the House of Representatives to impeach New Hampshire District Court Judge John Pickering. While Trump called for someone to "look into Judge Curiel," the Republicans went further: They compiled a series of detailed charges against the Federalist judge, alleging that he had committed high crimes and misdemeanors during his tenure that warranted removal from his office.

What followed was a curious proceeding. Pickering, the Federalists argued, was indeed insane and an alcoholic, but these were not impeachable offenses.

The *Litchfield Monitor* published an article admitting that Judge Pickering "was unfortunately bereft of his reason," but maintained that his trial was "the most cruel, unfeeling and savage instance of persecution, that has ever been witnessed among a civilized people."

The Republicans, uncomfortable with treating insanity as impeachable, argued that Pickering was sane and had knowingly committed legal indiscretions. Although the proceedings were contentious, Jefferson and the Republicans ultimately managed to convict Pickering and remove him from office.

Immediately following the ruling, the Republicans impeached their next target: Supreme Court Justice Samuel Chase. Unlike Pickering, Chase was fit for office, but he was notoriously pro-Federalist.

"Trump's attacks on judges who oppose his political agenda echo Jefferson's efforts to mold the judiciary"

He was impeached on charges that amounted to procedural errors from when he was serving as a trial judge. Federalists viewed the impeachment as a partisan affair and suspected that if Chase were to be convicted, the Republicans would quickly move to impeach Chief Justice John Marshall.

Throughout these two proceedings, the opposition Federalists stressed that impeaching individual judges on political grounds was abhorrent to the Constitution and judicial independence. Because they were a minority in Congress, the Federalists took to the press to make their case.

In an essay series published in the *New-York Evening Post* in 1801, Alexander Hamilton declared "that Constitution will be no more!" He added that Jefferson's assault on the judicial system were "the prelude perhaps of calamities to this country, at the contemplation of which imagination shudders!"

The Federalists believed that they would only be able to to protect the judiciary if they could alarm Americans and make them believe that the Constitution was under threat.

The *Columbian Centinel* argued in 1804 that with the impeachment of Justice Chase, Jefferson "has annihilated the main pillar of the constitution, the only effectual check to arbitrary and tyrannical conduct."

The strategy worked. Americans followed the Chase impeachment en masse and the proceedings in the Senate became a public spectacle. In the end, Chase was acquitted, but just barely. A majority of Senators voted against him on three of the articles of impeachment, but because a handful of Republicans had abstained from the vote, the Republicans could not reach the required two-thirds threshold. Chase's trial helped to solidify the principle of judicial independence. If just a few votes had been flipped, though, the trial's legacy would have been very different.

Today's Democrats are a far-cry from the Federalists, and President Trump is no Jefferson. But Trump's attacks on judges who oppose his political agenda echo Jefferson's efforts to mold the judiciary, and Democrats' proclamations by Democrats in the press about threats to judicial independence echo the rhetoric used by Federalists.

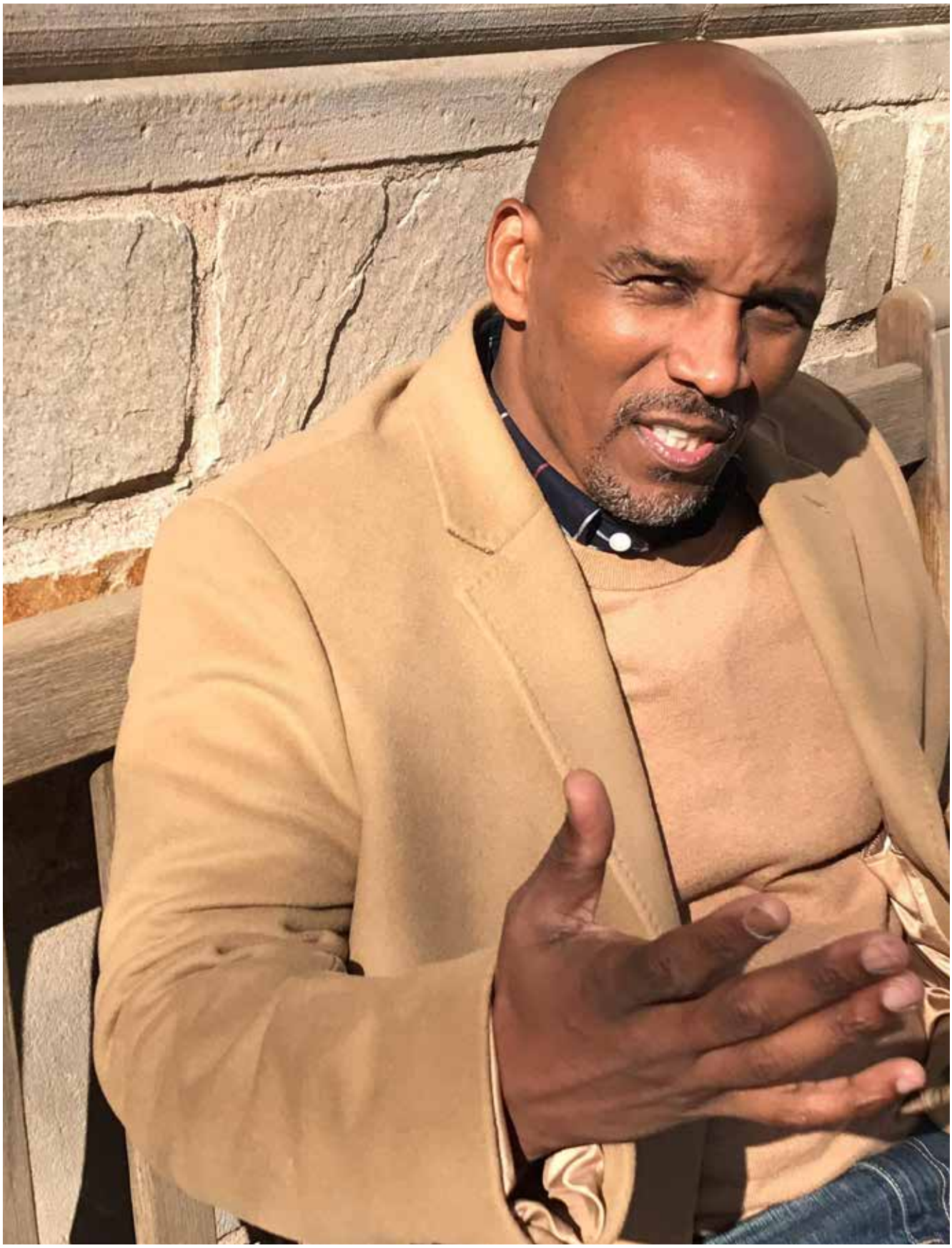
Liberal outlets lambaste President Trump for interfering with the courts and Department of Justice investigations. Some writers take it a step further, as former Secretary of Labor Robert Reich LAW' 73 did when he wrote that Trump's attacks on the judiciary are "another ground for impeachment." Others publications call for Americans to protect the "independent judiciary" and warn that President Trump has "declared war on the judiciary." A political cartoon in the New York Times, titled "Trump vs. the Judges," shows an angry President Trump with a sledgehammer in hand confronting a judge.

But today's proclamations about the threats to judicial independence lack the edge that characterized Federalist rhetoric. When the New York Times runs a satirical cartoon that shows Trump asking whether Guantanamo has room for "bad judges," it is criticizing the President for having the gall to threaten the centuries-old precedent of judicial independence. You would be hardpressed to find a serious political commentator who believes that President Trump's attacks will fundamentally reshape America's political institutions. The relationship between the judiciary and the executive is not up in the air in the same way that it was in Jefferson's time.

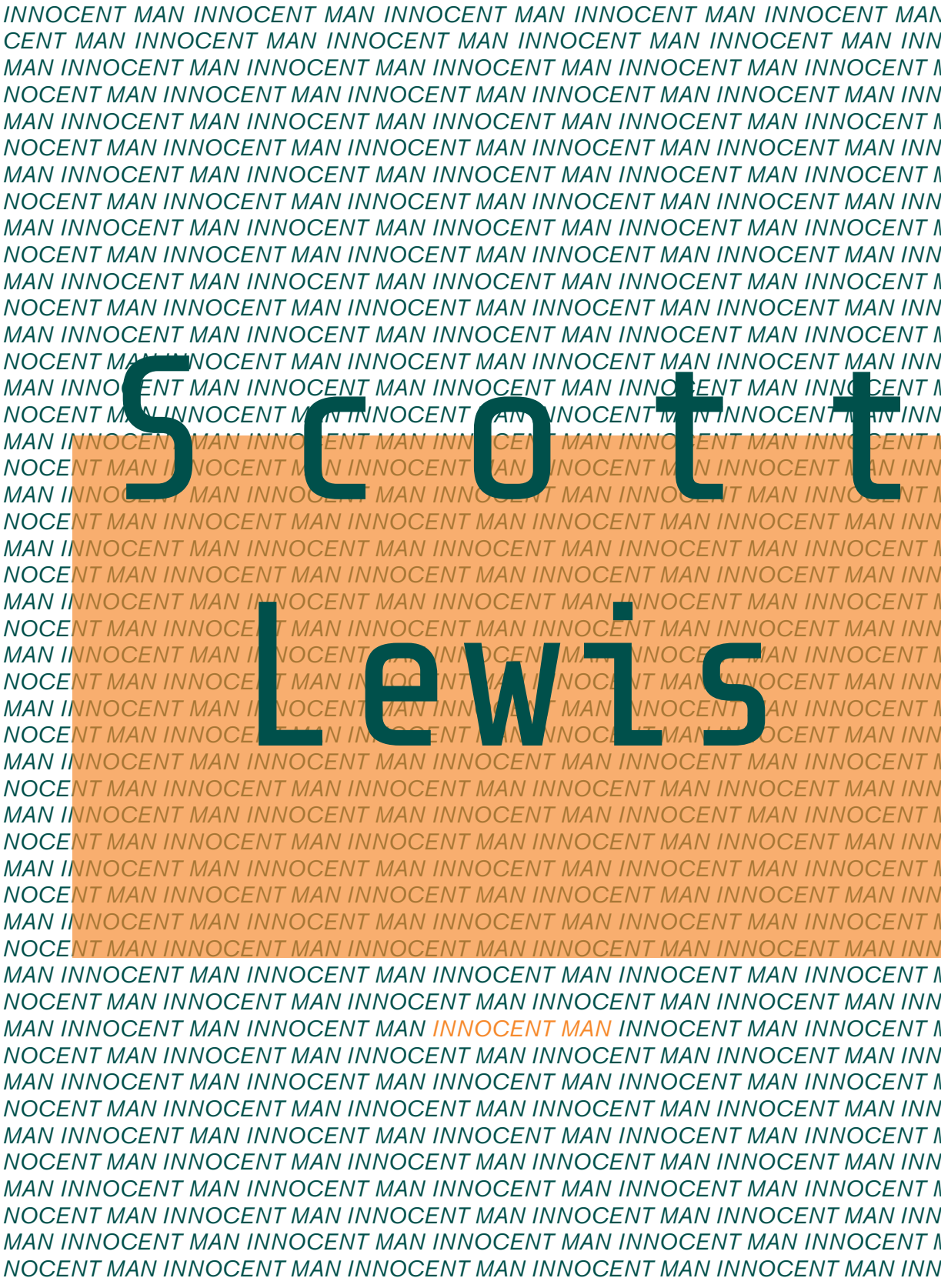
Trump's actions may have precedents, but Jefferson's intrusions into the judicial system were repudiated and proved politically damaging. Even before judicial independence was solidly established in American politics, attacks by the White House on individual judges were seen as distasteful and unpopular. If America could survive Jefferson and the Republicans' assault on the judicial system, it can overcome Trump's Twitter rants.



THE PROVIDENTIAL DETECTION



PHOTOS BY **SAMMY WESTFALL**


INNOCENT MAN INNOCENT MAN INNOCENT MAN

SCOTT LEWIS, INNOCENT MAN.

This is how Scott Lewis, sitting under his nightlight next to his law books, signed each of his legal briefs. Facing a sentence of 120 years, he wrote these motions on old copy paper and brown paper bags in his prison cell.

"Hey, it's gotta get mailed out, it's gotta get written," Lewis told me as we sat in the Branford College common room.

We spoke on Yale's campus, 49 miles from MacDougall-Walker Correctional Institution where Lewis was incarcerated, which was only possible because the Second Circuit Court of Appeals upheld an earlier ruling ordering Lewis's release from prison. His justice in 2015 came only after he had spent almost 20 years living in a prison cell for a crime that he didn't commit. This year, Lewis reached a 9.5 million dollar settlement with the City of New Haven.

"I think it is just a very, very unusual case," said Brett Dignam who, ten years after Lewis' imprisonment, led a Yale Law Clinic to help win Scott Lewis' case in the court.

"The fact that we even got to trial was truly remarkable," Dignam admitted. "But Mr. Lewis is a remarkable person."

Emily Washington, who worked on the case as a law student through the clinic, told *The Politic* she agreed: "Someone, someday, I think will probably make a movie out of it."

* * *

IN APRIL 1991, 24-year-old Scott Lewis was driving in Milford when he made an accidental left turn at a red light. When a police officer pulled him over, he thought to himself, "Okay, I'm going to get a ticket. I made a wrong turn."

Lewis handed his license to the officer, who walked back to the cruiser. A minute later, he returned to Lewis' vehicle—this time with his gun drawn.

"All of this for a damn traffic light?" Lewis recalled thinking.

But the gun was not drawn because of a traffic violation: The policeman had an arrest warrant for a double-homicide.

At 4:00 a.m. on October 11, 1990, Lamont Fields and former Alderman Ricardo Turner were fatally shot in Turner's apartment. Lewis was placed under arrest for their murder.

Scott Lewis and another man, Stefon Morant, were charged for the crime. Throughout the trial, Lewis denied involvement in the shooting and argued that he had been working at a printing company at the time of the murders. The prosecution rejected his alibi and instead relied on a single eyewitness, Ovil Ruiz, to place Lewis and Morant at the crime scene.

During the trial, Lewis said that he "just had to sit there and swallow it."

"Even though you know that people are lying, you have to handle yourself with a level of decorum," he added. "You can't let it get you angry. You had to hope that the people who were judging these stories that they were hearing, would be able to see through the lies."

* * *

LEWIS WAS CONVICTED in 1995 and sentenced to 120 years in prison. But he refused to spend the rest of his life incarcerated and immediately began efforts to prove his innocence.

Lewis built his own defense and appeal, and then formally represented himself from prison for 13 years in state court proceedings. He carefully adhered to the many procedural rules of filing for a *writ of habeas corpus*, meaning he reported his unlawful detention to a court.

"I went in. I was poor. I didn't have a lot of money to pay a lawyer to defend against the state's accusations," Lewis said. "I was going against a state that had all the resources in the world. They controlled all the information in the case." Despite these obstacles, Lewis, confident of his innocence, was determined to win.

Lewis enrolled in a paralegal course offered at his prison and became his own lawyer. As he filed motions, wrote briefs, and compiled evidence, Lewis learned legal writing with "literally no experience whatsoever."

"I always told myself: I am not in prison, I am at work," Lewis said, "I just happen to have to work twenty-four hours a day—and I don't have a social life." He laughed.

Lewis faced practical barriers as he built a legal defense from inside prison walls. For one thing, Lewis needed law books. He made use of what he could, and took advantage of his thirty-minute allotted increments at the Law Library to gather the written resources he needed.

Every day, he spent roughly twenty hours locked in his cell. Lewis would spend many of them—usually from 6:00 in the morning to 11:00 at night—reading and writing tirelessly at his desk. His room, which he shared with one another inmate, was roughly the size of a walk-in closet.

When it got late, Lewis had to

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rely on the light from outside cells or make use of a nightlight.

"Just because you're going to be up all night writing briefs, doesn't necessarily mean that your celly does," he said, referring to his cellmate, who sometimes said to him: 'Hey man, I'm trying to go to sleep! Man, you've been at the desk all day,'" Lewis recalled.

Some inmates told Lewis that he was unique; others called him crazy.

"I was in prison, physically. But I wasn't there mentally," he said.

Despite his rigorous preparation, Lewis' proceedings in court were taxing.

"I took a beating, man. I would get up in the morning and my clothes would fit. When I came back from court, it seemed they were all falling off me because I lost five pounds in just that courtroom." But Lewis didn't let the exhaustion faze him. "I would have to get up the next morning and get right back to it, you know? I couldn't let them beat me down."

> "You can't let it get you angry. You had to hope that the people who were judging these stories that they were hearing, would be able to see through the lies."

While Lewis was representing himself in court alone, he would be forced to keep on his khaki jumpsuit and shackles. "Let's just say that this is my legal box," said Lewis, pretending to lift up an imaginary object in front of me.

"So, I'm literally in court, walking to the bench like this," he explained, taking tiny steps in front of me with both his feet and wrists connected as if they were tied. "I'd be shoving papers like this," he said, miming a convoluted page-turning motion. "You're literally in the trenches. The reason they do this is they want you to give up. They want you to be humiliated."

Still, Lewis refused to let the ordeal anger him.

"If I was just so angry, I would have been so consumed. That wouldn't have gotten me anywhere," he reflected. "I would have just been another mad, black guy in prison for something that he didn't do."

He spoke about how intimidated he felt in the courtroom, surrounded by lawyers and judges with law school training and decades of experience.

While some say, "A man who represents himself has a fool for a client," Lewis does not agree. "'A man who doesn't stand up for himself is a fool. Period," he told me.

For a source of resilience, Lewis looked to his family: He did not want his four children, all of whom were under the age of seven at the time of his arrest, to grow up with people who thought that their father was a murderer. He did not want people to think that his mother raised someone capable of doing these horrible things. And he looked to the families of the victims. He thought they would want the right person to be convicted.

* * *

LEWIS' LEGAL WORK PAID OFF. According to a U.S. District Court ruling in 2013, Lewis' original defense had been improperly denied access to exculpatory evidence. Testimony from New Haven Police Department Detective Michael Sweeney suggested that NHPD Detective Vincent Raucci Jr. had obtained false statements from Ovil Ruiz, the key witness for the prosecution in the initial trial. During his interview, Ruiz had at first said he had no knowledge of the murders. But Sweeney witnessed Raucci inappropriately give important details about the case, after which Ruiz changed his version of the events to one that implicated Lewis.

After ten years of representing himself, in 2009, Lewis finally received assistance. Brett Dignam, a Yale Law professor at the time, took on his case *pro bono*.

"The Law Clinic, as you might imagine, looks for interesting and complicated cases," Dignam said in an interview with *The Politic*. Lewis' case was just that.



"I think at one point, [Dignam] was hesitant to take it, because the success rate seemed to be very low," Lewis said. "And the thing about Brett

is that she doesn't take cases that she doesn't believe in. And she doesn't take cases that she doesn't think she can win."

The clinic initially struggled to piece together Scott Lewis' conviction. Some documents had been misplaced because they got attached to past pleadings. To compensate for this lack of accessible evidence, Yale law students visited different courthouses, looking at as many of the original files surrounding the case as they could.

The missing documents marked the beginning of many challenges: The first judge reassigned the case to another judge; the State asked for multiple extensions; and all attempts by the court to prolong the trial were opposed by the Clinic. Lewis' case had been pending for six years, and his team felt that it needed to move forward.

The case was helped by a 22-month-long FBI investigation, which began in 1995, that tied Detective Raucci to cocaine trafficking in New Haven. Soon after the internal investigation suggested that he was corrupt, Raucci retired from the police force. He was later arrested in New Mexico on an unrelated larceny charge after a standoff with the police.

An initial hearing was held in New Haven in 2011. By this time, Brett Dignam had left Yale to teach at Columbia Law School. She simultaneously led a Columbia Law Clinic working to understand the case's record and supervised four of her third-year Yale Law students on Mondays and Fridays who were conducting further factual investigation.

Following Dignam's departure for Columbia, Emily Washington, one of the four remaining Yale Law students working on the case with Dignam, said, "We basically started our own sort of clinic, that was essentially the 'Free Scott Lewis Clinic.' It did not have that title," she said, laughing. "But that was essentially what it was."

Washington and another recent Yale Law graduate, Anjali Srinivasan, came back from their jobs in October of 2011 to argue the procedural motions in New Haven District Court for over three hours. Lewis and the team won the claim that the prosecution had failed to disclose evidence that Ruiz's testimony was not reliable. But Lewis' legal team had still not proven his innocence.

In 2013, a team of eight Columbia students presented evidence on Lewis' habeas claims before Judge Charles Haight.

Dignam recalled, "One of the students, as we came out of the procedural motion, said 'So, is that the best case I'm ever going to have in my life?' And I said 'Well… Yeah, probably.'"

Scott Lewis, then 48 years old, was released in February of 2014 on bail. A year later, his charges were dismissed. The state appealed the case, and everyone returned for the appellate argument in 2015, which Lewis' team won. In August 2015, the State of Connecticut formally dropped all charges against him. Lewis had won.

"That is a very, very hard claim to win. It is a very high standard," Dignam said. "But [proving his innocence] was super important to him."

Dignam attributes much of the victory's credit to Lewis. "He remained optimistic throughout, he never gave up, he really believed in himself and in us," she said. "And that made a huge difference.

Despite his ordeal, Lewis is still an optimistic person. "I don't think that all police officers are bad. There are just some that give a bad name to the system."

When he was first released, Lewis had to wear an ankle bracelet that tracked his location for fifteen months. "I felt like a robot," he admitted.

"But, I looked at the ankle bracelet and and said, 'Well, at least they know where I'm at all the time. I ain't gotta be worried about being falsely accused again,'" Lewis laughed. For this reason, he chooses to keep a location tracker on his phone to this day.

Prior to going to jail, he was getting ready to take the state exam to become a real estate agent. This year, more than two decades after his arrest, Lewis has "picked up right where [he] left off." He passed the real estate exam and has his real estate license. He wants to encourage property ownership among the less fortunate. Lewis is now a broker of his own company, where the motto is, "Dedicated. Skilled Reliable. And we're just getting started."

In more ways than one, Lewis' new life is just getting started, too.

He is now married to one of his old friends, Rachel, and they live together with their daughter, Harper Rose, who is almost two years old. Lewis smiled. "And the rest is history."

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MEASURE your moves:

wearable fitness steps up

BY **SANA ASLAM**

NESTLED ON STATE STREET, the rectangular brick building with a black and red dragon on its garage door appears, at first glance, like an abandoned warehouse. But the garage door opens to reveal CrossFit New Haven. Mid-kick, a woman looks down to check her wrist, her movement now slightly offbeat from the rest of the synchronized group. Her next kick is even harder and stronger.

Modern society relies on instantaneous measurements, and the health industry is no exception. From increasing the number of steps you take to monitoring your heart rate, you can now check and control a variety of measurements relevant to your health. In less than a second, you take another step, both literally and figuratively, towards optimizing your performance on an array of metrics.

Fitbit's website elaborates: "Every moment matters and every bit makes a big impact. Because fitness is the sum of your life. That's the idea Fitbit was built on—that fitness is not just about gym time. It's all the time."

The rise of wearable health technology takes advantage of our ability to change these measurements: You become the agent at all times. The data presented to you is in—or wrapped around—your hands.

Wearable devices have transformed CrossFit New Haven's workout philosophy, explained Head Trainer Aaron Poach in an interview with *The Politic*.

"We now talk more about a feeling and in less technical terms," Poach said. "If the goal is for someone to be breathing heavily, then they can use their wearable monitor to gauge what their heart rate is telling them in terms of if they should be pushing harder or less to reach that feeling."

Poach's clients do not believe heart rate is an incomprehensible or overly technical parameter of health: It is now something they can easily access and use to improve their workout. Wearable devices

are designed to provide feedback to users and increase their understanding of their activities and behavior. CrossFit New Haven is tapping into this opportunity by using their own CrossFit-specific technology—a software system called Wanify. Poach says the technology helps clients track their progress and lets them know which weights to use each time they come to the gym.

New York Times columnist David Brooks, in his 2013 op-ed "The Philosophy of Data," notes that data does two things well: It exposes when our intuitive view of reality is wrong, and it can illuminate patterns of behavior we have not yet noticed. He cites various examples in which data has challenged people's perceptions on everything from what constitutes a political campaign's success to the speech patterns of confident people.

Conversations with Poach make clear how Brooks' ideas can help us understand the benefits of data from wearable health devices. Poach explained that, in his experience, if clients feel they have reached their limit in the middle of a workout but their Fitbit data says otherwise, they are motivated to keep going. The data can challenge a client's preconceived notions about their endurance.

But others have been more skeptical of Fitbits' health implications.

"Sometimes the devices can interfere with a workout when people begin to obsessively check the tracker," Poach said. He emphasized that users can become more fixated with numbers on a screen and ignore the value of exercise for its own sake.

Wearable health devices might allow more agency, but it also raises a question: what does being an agent mean in a data-driven world saturated with distorted views of health, especially for young people?

Just this September, Stroud High School, an all-girls school in Gloucestershire, U.K. banned Fitbits and other smartwatches. The deputy headteacher expressed concerns that girls were monitoring the calories they burned and steps they took to a dangerous extent. At Stroud, some girls skipped lunch if they hadn't taken enough steps in the morning.

Indeed, it is difficult to separate fitness from 21st century obsessions with body shape and weight. DoSomething.org reports that in the U.S. alone, approximately 91 percent of women are unhappy with their bodies and resort to dieting to achieve their ideal body shape. Fitbits and other tracking devices may serve as vehicles to further unhealthy obsessions.

A study published in Eating Behaviors in August 2017 found that, among 493 college students, those who reported using calorie and fitness tracking technology had higher levels of eating concern and dietary restraint. The use of fitness tracking was uniquely associated with eating disorder symptoms, and, while the study provided only preliminary data, it suggested that "for some individuals, these devices might do more harm than good."

Many of these wearable health tracker companies branded their devices as a means for people to understand themselves better, as opposed to promoting comparison. An advertisement for Jawbone's UP fitness tracker reads, "Know yourself. Live better." A Microsoft Band advertisement reads, "This device can know me better than I know myself, and can help me be a better human."

Both companies attempt to inculcate a mindset where constant data collection is the ticket to becoming one's best, most productive, most successful self. The lure may seem personal and intimate—just the consumers and their wearables. But the devices don't just collect data—they also encourage users to think about themselves in terms of metrics, standards, and norms. When users begin comparing their metrics to a global network, they can become distracted from personal improvement and fixate instead on how they stand compared to others, playing into a culture of self-doubt and self-negativity.

Health technology's data can be used for purposes beyond individual growth. In April of 2004, the Bush Administration promised to establish electronic health records

WHAT DOES BEING AN AGENT MEAN IN A DATA-DRIVEN WORLD SATURATED WITH DISTORTED VIEWS OF HEALTH, ESPECIALLY FOR YOUNG PEOPLE?

"INSTEAD OF EVERYTHING BEING JUST A DATA COLLECTION RECORD, WE'RE STARTING TO LEARN HOW TO USE HEALTH INFORMATION TECHNOLOGY TO SHAPE PRACTICE AND TO PREDICT THE FUTURE"

(EHRs) for most U.S. residents within 10 years. Through executive order, President George W. Bush '68 created the role of National Coordinator of Health Information Technology to oversee how the federal government could integrate private and public sectors by using technology to strengthen existing health infrastructures.

Wearable fitness trackers and health monitors have significant potential to inform EHRs. Wearable devices can be used in conjunction with these records to improve individual health care and the overall health of communities.

"HEALTH TECHNOLOGY HAS THE POTENTIAL TO DEMOCRATIZE HEALTH AND HEALTH CARE"

Former National Coordination of Health Information Technology Karen DeSalvo, who served in the Obama Administration, told *The Politic* that health technology is allowing more people control over their health information.

"Health technology has the potential to democratize health and health care in a lot of ways, and as time goes on, more people will have access to cellphones, smartphones, and internet and thus to health technology," she said.

EHRs are one of the most promising applications of health technology, since technology could provide direct access and instant updates to patient records at any time. This potential may prove especially helpful for patients who move locations frequently or who live in remote areas without access to doctors who know their health history.

Data-enhanced EHRs also allow for better research on disease outbreaks. This is particularly true for vulnerable populations who do not receive the benefits of typical health prevention statistical modeling.

"There is an exciting new frontier of how this technology can be used to support surveillance of emerging infections like Ebola, seasonal infections like influenza, or chronic diseases like the risk of diabetes in a community," DeSalvo explained. "Instead of everything being just a data collection record, we're starting to learn how to use health information technology to shape practice and to predict the future, so how we find high risk neighborhoods, people, and populations."

Using health information technology and electronic health records to improve outcomes is no longer just a government goal. Companies like Apple have tapped into the trend and are seeking to improve their own outcomes and profits. DeSalvo explained that companies are trying to figure out how to incorporate individual data from Fitbits, electronic health records, internet synced devices, social services data, and purchasing data into what she called, "a health record and not a health care record."

But with the rise of health technology come privacy and cybersecurity concerns. Fitbit maintains a lot of information about its users, who give the company access to many of their devices. If companies were to also obtain their users' medical history, the company could theoretically tailor advertisements specifically to them.

According to DeSalvo, "That's why lot of big companies like Apple or Amazon are really interested in health care, because there's a lot of money to be made from knowing this information. If you give your electronic health record over to a company, they are not really regulated. Protecting the consumer in that space is challenging and an interesting area of policy and work going forward. But it's actively happening."

The implications of wearable technology are far-reaching. They have become tied to our societal expectation of a perfect body image. Their advertisements play into 21st century pressures to be hyper-productive. And not only do these devices have the potential to build a holistic view of a person's health, but they might also allow companies to profit on user health information. Wearable technology may be small, but its power is much greater than its size.

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iCitizen: How an A.I. became a citizen of Saudi Arabia

BY **ISABEL WANNER '21**

Saudi Arabia granted citizenship to Sophia, an artificial intelligence modelled after Audrey Hepburn, at an investments conference in October. Whether the announcement was a publicity stunt, a political statement about the future of technology, or a bit of both, the move raises questions: Is it possible for an A.I. to integrate into a human citizenry? And what does A.I. empowerment mean for the future? Isabel Wanner '21 tracks the genesis of Sophia and looks ahead.

Pulpit Politics: Catholics Confront the Complexities of Activism

BY **GREGORY JANY '21**

Two chaplains at St. Thomas More were recently arrested outside a Hartford courthouse as they protested the deportation of two undocumented immigrants. On the national level, Diane Feinstein prompted controversy when she questioned the role a judicial nominee's religious beliefs play in the judge's decision making. Gregory Jany '21 examines how Catholics reconcile faith and politics.

George W. Bush in the Rearview Mirror

BY **HARRY WESTBROOK '21**

Like many presidents, George W. Bush has seen a rise in popularity since leaving office. Harry Westbrook '21 analyzes the origins of this trend, and asks an important question: should we let the present color our opinion of the past?

Maintaining the Rule of Law: Yale Law Clinic upholds legal principles on the national stage

BY **ADRIAN RIVERA '20**

The Rule of Law Clinic, one of Yale Law's newest legal clinics, was instrumental in challenging the Trump administration's travel ban. Adrian Rivera '20 traces the history of the law school clinic and explores the formation of Yale's Rule of Law clinic.

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